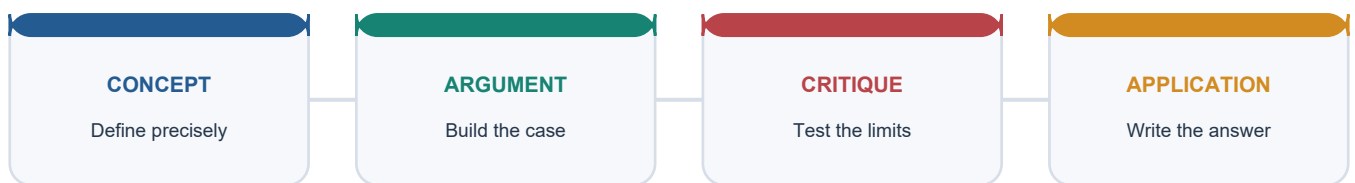


COMPLETE LEARNING SESSION

Polity Topic 38 - Lokpal and Lokayuktas

Polity | GS-II | Complete learning package

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Contents

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity Topic 38 - Lokpal and Lokayuktas

Subject: Polity | **GS Paper:** GS-II | **Control date:** 8 September 2026

Source control: canonical Basic/Core and optional Advanced owners; official UPSC 2025 GS-I paper and local official Set-A key; the Lokpal and Lokayuktas Act, 2013; the 2016 amending Act; Lokpal (Complaint) Rules, 2020; official Gazette material on the statutory wings; the Prevention of Corruption Act, 1988 as amended; verified State statutes used only for contrast; and proposition-controlled Supreme Court authorities. Volatile incumbents and live complaint, vacancy, disposal or conviction figures are omitted.

Core thesis: Lokpal is a statutory complaint-and-process institution with wide but qualified anti-corruption jurisdiction. It can route inquiry and investigation, supervise referred DSPE matters, grant sanction in its statutory field and activate attachment/prosecution mechanisms, but it does not itself convict, sentence, automatically dismiss officials, investigate every private person, control all CBI cases or override parliamentary privilege generally.

BASIC LEARNING SESSION

SESSION 1 - CORE IDEA AND LEGAL IDENTITY

VISUAL FIRST

CORE IDEA AND LEGAL IDENTITY

CORE: Lokpal is a statutory corruption-accountability institution, not a constitutional court or police force.

|

v

AUTHORITY: Lokpal and Lokayuktas Act, 2013, sections 2(1)(e), 3, 20 and 35.

|

v

WHY IT MATTERS: Its legal authority is substantial because it can route inquiry, investigation and prosecution, but each power remains tied to the statute and the Prevention of Corruption Act.

|

v

LIMIT: Only the competent court can convict or sentence; Lokpal is not a general public-grievance forum.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The ombudsman idea supplies the accountability logic, but the enacted Indian model is more than a classical recommendatory grievance office.

Technical definition: The Lokpal is a statutory body, established for the Union by the Lokpal and Lokayuktas Act, 2013.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The ombudsman idea supplies the accountability logic, but the enacted Indian model is more than a classical recommendatory grievance office.

MUST-WRITE KEYWORDS

- Legal Identity
- statutory body
- Parliamentary statute
- Lokpal and Lokayuktas Act, 2013
- Not a constitutional body
- Section 2(1)(e)

Claim -> named evidence -> analysis -> qualification

- **Claim:** Lokpal is a statutory corruption-accountability institution, not a constitutional court or police force.

- **Named evidence:** Lokpal and Lokayuktas Act, 2013, sections 2(1)(e), 3, 20 and 35.
- **Analysis:** Its legal authority is substantial because it can route inquiry, investigation and prosecution, but each power remains tied to the statute and the Prevention of Corruption Act.
- **Qualification:** Only the competent court can convict or sentence; Lokpal is not a general public-grievance forum.

Evidence

[FACT] The Lokpal is a **statutory body**, established for the Union by the Lokpal and Lokayuktas Act, 2013. It is not created by the Constitution and is not a constitutional court, police force or general public-grievance commission.

[FACT] Section 2 defines a complaint as one made in the prescribed form alleging that a covered public servant committed an offence punishable under the Prevention of Corruption Act, 1988. This makes the institution corruption-specific.

[ANALYSIS] The ombudsman idea supplies the accountability logic, but the enacted Indian model is more than a classical recommendatory grievance office. It can route preliminary inquiry and investigation, supervise the DSPE/CBI in referred matters, grant prosecution sanction, use attachment machinery and direct prosecution under the Act.

[LIMIT] These powers do not make Lokpal the final judge of criminal guilt. Investigation, prosecution and adjudication remain legally distinct stages; conviction or acquittal belongs to the competent court.

Visual 02 - Legal Identity Matrix

Question	Correct position	Named evidence	Exam trap
What creates Lokpal?	Parliamentary statute	Lokpal and Lokayuktas Act, 2013	Not a constitutional body
What type of complaint?	Alleged Prevention of Corruption Act offence by a covered public servant	Section 2(1)(e)	Not every service grievance
Does it investigate every case itself?	It may conduct preliminary inquiry through its Inquiry Wing; investigation is assigned to an agency, including DSPE/CBI	Sections 11 and 20	Inquiry is not police investigation
Does it prosecute?	Prosecution Wing or investigating agency may prosecute when directed	Sections 12 and 20(8)	Direction to prosecute is not conviction
Who determines guilt?	Special Court/competent court	Sections 24, 35 and criminal procedure	Lokpal is not a criminal court

Caption: Legal source, entry condition, process power and final outcome must be kept separate.

Visual 03 - Claim-to-Conclusion Discipline

CLAIM

"Lokpal has meaningful anti-corruption powers"

NAMED EVIDENCE

ss.20, 23, 25, 29-33 + Special Court

ANALYSIS

It can move a complaint across inquiry, investigation and prosecution

QUALIFICATION

No general suo motu jurisdiction; no conviction power; agency dependence remains

Caption: A balanced UPSC answer proves institutional capacity and then identifies its legal boundary.

Prelims trap

Only the competent court can convict or sentence; Lokpal is not a general public-grievance forum.

Mains use

Use **Lokpal and Lokayuktas Act, 2013, sections 2(1)(e), 3, 20 and 35**. to prove the claim, then explain that its legal authority is substantial because it can route inquiry, investigation and prosecution, but each power remains tied to the statute and the Prevention of Corruption Act.

Closing recall flow - CORE IDEA AND LEGAL IDENTITY

CORE IDEA AND LEGAL IDENTITY

-> CLAIM: Lokpal is a statutory corruption-accountability institution, not a constitutional court or police force.

-> EVIDENCE: Lokpal and Lokayuktas Act, 2013, sections 2(1)(e), 3, 20 and 35.

-> ANALYSIS: Its legal authority is substantial because it can route inquiry, investigation and prosecution, but each power remains tied to the statute and the Prevention of Corruption Act.

-> LIMIT: Only the competent court can convict or sentence; Lokpal is not a general public-grievance forum.

Recap: Lokpal is a statutory corruption-accountability institution, not a constitutional court or police force. Only the competent court can convict or sentence; Lokpal is not a general public-grievance forum.

SESSION 2 - EVOLUTION: OMBUDSMAN TO THE 2013 ACT

VISUAL FIRST

EVOLUTION: OMBUDSMAN TO THE 2013 ACT

CORE: The 2013 Act is the result of a long institutional and legislative evolution rather than a product of one protest.

AUTHORITY: Swedish ombudsman, 1809; First Administrative Reforms Commission, 1966; repeated Lokpal Bills from 1968; 2011 anti-corruption movement; Act 1 of 2014.

WHY IT MATTERS: The chronology explains why the Indian model combines ombudsman accountability with specialised inquiry, investigation, prosecution and judicial stages.

LIMIT: The 2011 movement accelerated political salience, but Parliament's Act, later amendment and rules are the legal sources.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: India moved from the ombudsman idea and First ARC recommendation to repeated Bills and the 2013 Act.

Technical definition: Sweden's 1809 ombudsman model informed the First ARC proposal; repeated parliamentary Bills preceded enactment and commencement of the Lokpal and Lokayuktas Act, 2013.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

India moved from the ombudsman idea and First ARC recommendation to repeated Bills and the 2013 Act.

MUST-WRITE KEYWORDS

- ombudsman
- First ARC
- Lokpal Bills
- 2013 Act

Claim -> named evidence -> analysis -> qualification

- **Claim:** The 2013 Act is the result of a long institutional and legislative evolution rather than a product of one protest.
- **Named evidence:** Swedish ombudsman, 1809; First Administrative Reforms Commission, 1966; repeated Lokpal Bills from 1968; 2011 anti-corruption movement; Act 1 of 2014.
- **Analysis:** The chronology explains why the Indian model combines ombudsman accountability with specialised inquiry, investigation, prosecution and judicial stages.
- **Qualification:** The 2011 movement accelerated political salience, but Parliament's Act, later amendment and rules are the legal sources.

Evidence

[FACT] The modern ombudsman institution is conventionally traced to Sweden in 1809. Local Polity sources explain its diffusion to other jurisdictions as a mechanism for receiving complaints about administrative wrongdoing.

[FACT] India's First Administrative Reforms Commission, in its 1966 work on redress of citizens' grievances, recommended two institutions: a **Lokpal at the Union level** and **Lokayuktas at the State level**.

[FACT] Successive Lokpal Bills beginning in 1968 repeatedly lapsed, were withdrawn or failed to complete enactment. The political and civil-society mobilisation of 2011 formed part of the bounded context in which the later Bill was debated.

[FACT] The Lokpal and Lokayuktas Act received presidential assent on **1 January 2014** and came into force on **16 January 2014** through Gazette notification.

[ANALYSIS] The long legislative history shows a recurring design conflict: how to create an institution strong enough to scrutinise high public office without merging complainant, investigator, prosecutor and judge.

[LIMIT] Civil-society mobilisation explains political salience; it is not the legal source of the institution. The enacted statute, rules and judicial interpretation control the present framework.

Visual 04 - Evolution Timeline

Milestone	Development	Exam significance
1809	Swedish ombudsman	Comparative origin
1966	First ARC recommends Lokpal and Lokayuktas	Indian institutional proposal
1968 onward	Repeated parliamentary Bills	Long implementation delay
2011	Renewed public mobilisation and legislative activity	Political context only
2013	Parliament enacts the law	Statutory foundation
1 Jan 2014	Presidential assent	Act No. 1 of 2014
16 Jan 2014	Commencement notification	Legal operation begins
2016	Section 44 substituted	Asset-declaration framework changed
2017	<i>Common Cause v. Union of India (2017)</i> holds Act workable despite LoP vacancy	Appointment blockage rejected
2019	Initial appointments made	Institutional constitution in practice
2024	Inquiry Wing formally constituted	Statutory wing moved beyond paper creation
2025	Prosecution Wing constituted and Gazette-notified	Formal prosecution architecture created

Caption: Enactment, appointment, wing constitution and procedural consolidation are separate implementation stages.

Visual 05 - Ombudsman, Grievance and Criminal Process

Model	Core concern	Typical output	Lokpal position
Classical ombudsman	Maladministration/unfairness	Recommendation/report	Historical inspiration
Public grievance portal	Service-delivery complaint	Administrative redress	Not Lokpal's statutory core
Vigilance institution	Integrity and departmental vigilance	Advice/disciplinary route	CVC-linked layer
Police investigation	Evidence collection for offences	Police report/charge-sheet	CBI/agency role
Lokpal model	Prescribed corruption complaint against covered public servant	Inquiry routing, supervision, sanction, prosecution direction	Hybrid statutory ombudsman
Court	Criminal adjudication	Conviction/acquittal/sentence	Separate final stage

Caption: Calling every accountability mechanism an "ombudsman" conceals decisive differences in jurisdiction and legal output.

Prelims trap

The 2011 movement accelerated political salience, but Parliament's Act, later amendment and rules are the legal sources.

Mains use

Use **Swedish ombudsman, 1809; First Administrative Reforms Commission, 1966; repeated Lokpal Bills from 1968; 2011 anti-corruption movement; Act 1 of 2014.** to prove the claim, then explain that the chronology explains why the Indian model combines ombudsman accountability with specialised inquiry, investigation, prosecution and judicial stages.

Closing recall flow - EVOLUTION: OMBUDSMAN TO THE 2013 ACT

EVOLUTION: OMBUDSMAN TO THE 2013 ACT

-> CLAIM: The 2013 Act is the result of a long institutional and legislative evolution rather than a product of one protest.

-> EVIDENCE: Swedish ombudsman, 1809; First Administrative Reforms Commission, 1966; repeated Lokpal Bills from 1968; 2011 anti-corruption movement; Act 1 of 2014.

-> ANALYSIS: The chronology explains why the Indian model combines ombudsman accountability with specialised inquiry, investigation, prosecution and judicial stages.

-> LIMIT: The 2011 movement accelerated political salience, but Parliament's Act, later amendment and rules are the legal sources.

Recap: The 2013 Act is the result of a long institutional and legislative evolution rather than a product of one protest. The 2011 movement accelerated political salience, but Parliament's Act, later amendment and rules are the legal sources.

SESSION 3 - STATUTORY ARCHITECTURE

VISUAL FIRST

STATUTORY ARCHITECTURE

CORE: The Act deliberately distributes authority across separate institutions and stages.

|
v

AUTHORITY: Sections 11, 12, 20, 23, 25 and 35.

|
v

WHY IT MATTERS: Separation of complaint scrutiny, preliminary inquiry, police investigation, prosecution and adjudication protects due process and specialisation.

|
v

LIMIT: Distribution can also create delay and coordination gaps; it does not establish one universal command hierarchy.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Act creates a multi-stage system: Lokpal benches decide how complaints proceed; the Inquiry Wing undertakes preliminary inquiry; the CVC receives prescribed categories; investigating agencies conduct investigation; the Prosecution Wing or agency prosecutes; Special Courts adjudicate.

Technical definition: The statutory architecture separates complaint scrutiny, preliminary inquiry, investigation, prosecution and adjudication among legally distinct actors.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Act creates a multi-stage system: Lokpal benches decide how complaints proceed; the Inquiry Wing undertakes preliminary inquiry; the CVC receives prescribed categories; investigating agencies conduct investigation; the Prosecution Wing or agency prosecutes; Special Courts adjudicate.

MUST-WRITE KEYWORDS

- Statutory Architecture
- Filing/scrutiny
- Registry and Lokpal bench
- Form, jurisdiction, maintainability
- Criminal guilt
- Preliminary inquiry

Claim -> named evidence -> analysis -> qualification

- **Claim:** The Act deliberately distributes authority across separate institutions and stages.
- **Named evidence:** Sections 11, 12, 20, 23, 25 and 35.
- **Analysis:** Separation of complaint scrutiny, preliminary inquiry, police investigation, prosecution and adjudication protects due process and specialisation.

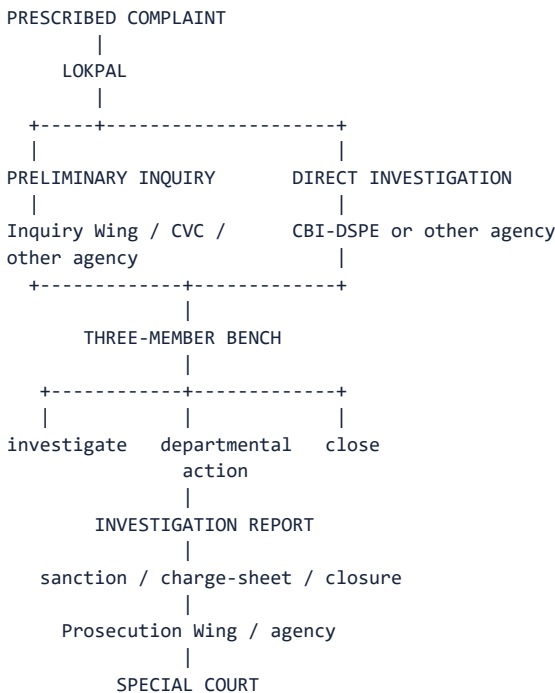
- **Qualification:** Distribution can also create delay and coordination gaps; it does not establish one universal command hierarchy.

Evidence

[FACT] The Act creates a multi-stage system: Lokpal benches decide how complaints proceed; the Inquiry Wing undertakes preliminary inquiry; the CVC receives prescribed categories; investigating agencies conduct investigation; the Prosecution Wing or agency prosecutes; Special Courts adjudicate.

[ANALYSIS] The architecture deliberately disperses power. This reduces the danger of a single institution controlling every stage, but creates coordination, delay and responsibility-diffusion risks.

Visual 06 - Statutory Architecture



Caption: The statute separates screening, preliminary inquiry, investigation, prosecution and adjudication.

Visual 07 - Power Holder by Stage

Stage	Principal actor	Legal task	What it does not decide
Filing/scrutiny	Registry and Lokpal bench	Form, jurisdiction, maintainability	Criminal guilt
Preliminary inquiry	Inquiry Wing/CVC/agency	Whether prima facie case exists	Final culpability
Investigation	CBI/DSPE or other agency	Collect admissible evidence	Conviction
Post-report decision	At least three Lokpal Members	Sanction, prosecution/closure, departmental route	Trial verdict
Prosecution	Prosecution Wing/agency	Present case before Special Court	Judicial outcome
Trial	Special Court	Decide charges on evidence	Institutional policy

Caption: "Lokpal investigated and convicted" is an invalid compression of multiple legal stages.

Prelims trap

Distribution can also create delay and coordination gaps; it does not establish one universal command hierarchy.

Mains use

Use **Sections 11, 12, 20, 23, 25 and 35**. to prove the claim, then explain that separation of complaint scrutiny, preliminary inquiry, police investigation, prosecution and adjudication protects due process and specialisation.

Closing recall flow - STATUTORY ARCHITECTURE

STATUTORY ARCHITECTURE

- > CLAIM: The Act deliberately distributes authority across separate institutions and stages.
- > EVIDENCE: Sections 11, 12, 20, 23, 25 and 35.
- > ANALYSIS: Separation of complaint scrutiny, preliminary inquiry, police investigation, prosecution and adjudication protects due process and specialisation.
- > LIMIT: Distribution can also create delay and coordination gaps; it does not establish one universal command hierarchy.

Recap: The Act deliberately distributes authority across separate institutions and stages. Distribution can also create delay and coordination gaps; it does not establish one universal command hierarchy.

SESSION 4 - COMPOSITION UNDER SECTION 3

VISUAL FIRST

COMPOSITION UNDER SECTION 3

CORE: Section 3 combines professional competence with a statutory representation floor.

|
v

AUTHORITY: Section 3(2): Chairperson plus not more than eight Members; 50 per cent Judicial Members; not less than 50 per cent of Members from listed groups.

|
v

WHY IT MATTERS: The two percentages regulate different dimensions and may overlap in the same persons.

|
v

LIMIT: Both percentages use Members as the denominator; the Chairperson is not automatically included and eight is a ceiling.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Lokpal has one Chairperson and up to eight Members, with separate judicial-member and social-representation requirements.

Technical definition: The statutory percentage applies to the Members, not to a combined denominator that automatically includes the Chairperson.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Section 3 provides a Chairperson plus not more than eight Members.

MUST-WRITE KEYWORDS

- Composition Under Section 3
- Chairperson plus not more than eight Members
- Judicial membership
- Members
- "At least half of the whole Lokpal"
- 50% shall be Judicial Members

Claim -> named evidence -> analysis -> qualification

- **Claim:** Section 3 combines professional competence with a statutory representation floor.
- **Named evidence:** Section 3(2): Chairperson plus not more than eight Members; 50 per cent Judicial Members; not less than 50 per cent of Members from listed groups.
- **Analysis:** The two percentages regulate different dimensions and may overlap in the same persons.
- **Qualification:** Both percentages use Members as the denominator; the Chairperson is not automatically included and eight is a ceiling.

Evidence

[FACT] Section 3 provides a **Chairperson plus not more than eight Members**.

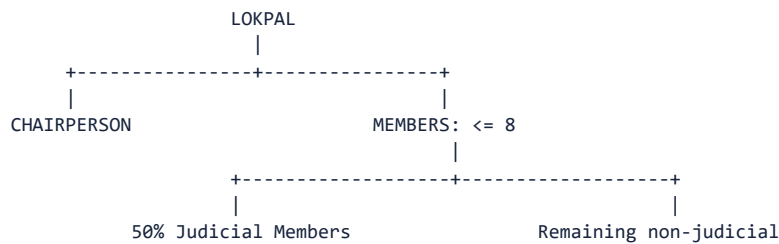
[FACT] **Fifty per cent of the Members shall be Judicial Members.** The statutory percentage applies to the Members, not to a combined denominator that automatically includes the Chairperson.

[FACT] **Not less than fifty per cent of the Members** must be from among persons belonging to the Scheduled Castes, Scheduled Tribes, Other Backward Classes, minorities and women.

[ANALYSIS] The first rule distributes professional background; the second establishes a social-representation floor. They are different requirements and can overlap in the same individual.

[LIMIT] "Maximum eight" is a ceiling, not a permanent guarantee that every seat is always filled. This package does not freeze the current occupancy of those seats.

Visual 08 - Composition at a Glance



REPRESENTATION FLOOR ACROSS MEMBERS:
not less than 50% from SC / ST / OBC / minorities / women

Caption: Judicial share and representation share are two distinct statutory calculations.

Visual 09 - Percentage Rules Without Confusion

Rule	Denominator	Exact language	Wrong shortcut
Judicial membership	Members	50% shall be Judicial Members	"At least half of the whole Lokpal"
Social representation	Members	Not less than 50% from listed categories	"Exactly half including Chairperson"
Total size	Members	Not exceeding eight	"Always eight members"

Caption: UPSC close options often alter the denominator or replace a floor with an exact quota.

Prelims trap

Both percentages use Members as the denominator; the Chairperson is not automatically included and eight is a ceiling.

Mains use

Use **Section 3(2): Chairperson plus not more than eight Members; 50 per cent Judicial Members; not less than 50 per cent of Members from listed groups.** to prove the claim, then explain that the two percentages regulate different dimensions and may overlap in the same persons.

Closing recall flow - COMPOSITION UNDER SECTION 3

COMPOSITION UNDER SECTION 3

- > CLAIM: Section 3 combines professional competence with a statutory representation floor.
- > EVIDENCE: Section 3(2): Chairperson plus not more than eight Members; 50 per cent Judicial Members; not less than 50 per cent of Members from listed groups.
- > ANALYSIS: The two percentages regulate different dimensions and may overlap in the same persons.
- > LIMIT: Both percentages use Members as the denominator; the Chairperson is not automatically included and eight is a ceiling.

Recap: Section 3 combines professional competence with a statutory representation floor. Both percentages use Members as the denominator; the Chairperson is not automatically included and eight is a ceiling.

SESSION 5 - ELIGIBILITY, EXPERTISE AND DISQUALIFICATIONS

VISUAL FIRST

ELIGIBILITY, EXPERTISE AND DISQUALIFICATIONS

CORE: Eligibility rules seek expertise and integrity while excluding active political, local-body and incompatible occupational interests.

|

v

AUTHORITY: Section 3(3)-(4), including the 25-year expertise route and minimum age of 45.

|

v

WHY IT MATTERS: The design allows judicial and non-judicial competence without making the Chairperson's office exclusively judicial.

|

v

LIMIT: A retired civil servant is not disqualified merely by retirement; every listed qualification and disqualification must still be met.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Chairperson may be a person who is or has been Chief Justice of India, is or has been a Supreme Court Judge, or is an eminent person satisfying the non-judicial expertise condition.

Technical definition: A non-judicial Member must be a person of impeccable integrity and outstanding ability with at least twenty-five years of special knowledge and expertise in anti-corruption policy, public administration, vigilance, finance including insurance and banking, law and management.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A Chairperson may be a person who is or has been Chief Justice of India, is or has been a Supreme Court Judge, or is an eminent person satisfying the non-judicial expertise condition.

MUST-WRITE KEYWORDS

- Eligibility
- Expertise
- Disqualifications
- twenty-five years
- forty-five years
- Chairperson - judicial route

Claim -> named evidence -> analysis -> qualification

- **Claim:** Eligibility rules seek expertise and integrity while excluding active political, local-body and incompatible occupational interests.
- **Named evidence:** Section 3(3)-(4), including the 25-year expertise route and minimum age of 45.
- **Analysis:** The design allows judicial and non-judicial competence without making the Chairperson's office exclusively judicial.
- **Qualification:** A retired civil servant is not disqualified merely by retirement; every listed qualification and disqualification must still be met.

Evidence

[FACT] A Chairperson may be a person who is or has been Chief Justice of India, is or has been a Supreme Court Judge, or is an eminent person satisfying the non-judicial expertise condition.

[FACT] A Judicial Member must be or have been a Supreme Court Judge or Chief Justice of a High Court.

[FACT] A non-judicial Member must be a person of impeccable integrity and outstanding ability with at least **twenty-five years** of special knowledge and expertise in anti-corruption policy, public administration, vigilance, finance including insurance and banking, law and management.

[FACT] The Chairperson or a Member cannot be below **forty-five years** on assuming office.

[FACT] Section 3 also excludes an MP, State/UT legislator, Panchayat or Municipality member, a person convicted of an offence involving moral turpitude, and a person removed or dismissed from Union or State service.

[FACT] An appointee cannot hold another office of trust or profit, be affiliated with a political party, carry on business or practise a profession; existing conflicting engagements must be severed before entry into office.

Visual 10 - Eligibility Matrix

Office	Eligible background	Experience threshold
Chairperson - judicial route	Current/former CJI or current/former Supreme Court Judge	Office-based
Chairperson - eminent-person route	Integrity and outstanding ability in listed fields	At least 25 years
Judicial Member	Current/former Supreme Court Judge or current/former High Court Chief Justice	Office-based
Non-judicial Member	Listed anti-corruption/governance/finance/law/management expertise	At least 25 years
Every appointee	Must be at least 45 on assuming office	Age floor

Caption: The Chairperson is not confined to a serving or retired Chief Justice of India.

Visual 11 - Disqualification Screen

IS THE PERSON:
 MP / State or UT legislator? ----- yes -> ineligible
 Panchayat / Municipality member? ----- yes -> ineligible
 convicted of moral-turpitude offence? ----- yes -> ineligible
 removed/dismissed from Union/State service? -- yes -> ineligible
 under 45 on assuming office? ----- yes -> ineligible
 politically affiliated / in business /
 profession / other trust or profit office? --- must sever before entry

Caption: Eligibility credentials do not cure an express statutory disqualification.

Prelims trap

A retired civil servant is not disqualified merely by retirement; every listed qualification and disqualification must still be met.

Mains use

Use **Section 3(3)-(4)**, including the **25-year expertise route and minimum age of 45**, to prove the claim, then explain that the design allows judicial and non-judicial competence without making the Chairperson's office exclusively judicial.

Closing recall flow - ELIGIBILITY, EXPERTISE AND DISQUALIFICATIONS

ELIGIBILITY, EXPERTISE AND DISQUALIFICATIONS
 -> CLAIM: Eligibility rules seek expertise and integrity while excluding active political, local-body and incompatible occupational interests.
 -> EVIDENCE: Section 3(3)-(4), including the 25-year expertise route and minimum age of 45.
 -> ANALYSIS: The design allows judicial and non-judicial competence without making the Chairperson's office exclusively judicial.
 -> LIMIT: A retired civil servant is not disqualified merely by retirement; every listed qualification and disqualification must still be met.

Recap: Eligibility rules seek expertise and integrity while excluding active political, local-body and incompatible occupational interests. A retired civil servant is not disqualified merely by retirement; every listed qualification and disqualification must still be met.

SESSION 6 - APPOINTMENT: SELECTION COMMITTEE AND SEARCH COMMITTEE

VISUAL FIRST

APPOINTMENT: SELECTION COMMITTEE AND SEARCH COMMITTEE

CORE: Appointment is formally plural but not free from executive influence.

|

v

AUTHORITY: Section 4 Selection Committee and Search Committee; Common Cause v. Union of India, judgment dated 27 April 2017.

|

v

WHY IT MATTERS: Executive, legislative, judicial and eminent-jurist participation broadens input, while the Search Committee supplies an expert screening layer.

|

v

LIMIT: Section 4(2) prevents a vacancy from invalidating appointment; Common Cause did not rewrite the Act to create a permanent largest-opposition-party substitute.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The President appoints Lokpal leadership after a statutory selection process.

Technical definition: The Selection Committee combines the PM, Speaker, Lok Sabha LoP, CJI or nominee and eminent jurist; the Search Committee assists, and section 4(2) prevents a vacancy from invalidating appointment.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The President appoints Lokpal leadership after a statutory selection process.

MUST-WRITE KEYWORDS

- **President**
- **Selection Committee**
- **Search Committee**
- **Common Cause v. Union of India (2017)**

Claim -> named evidence -> analysis -> qualification

- **Claim:** Appointment is formally plural but not free from executive influence.
- **Named evidence:** Section 4 Selection Committee and Search Committee; Common Cause v. Union of India, judgment dated 27 April 2017.
- **Analysis:** Executive, legislative, judicial and eminent-jurist participation broadens input, while the Search Committee supplies an expert screening layer.
- **Qualification:** Section 4(2) prevents a vacancy from invalidating appointment; Common Cause did not rewrite the Act to create a permanent largest-opposition-party substitute.

Evidence

[FACT] The President appoints the Chairperson and Members on the recommendation of the Selection Committee.

[FACT] Section 4 names five positions:

1. Prime Minister - Chairperson;
2. Speaker of the Lok Sabha;
3. Leader of Opposition in the Lok Sabha;
4. Chief Justice of India or a Supreme Court Judge nominated by the CJI; and
5. one eminent jurist nominated by the President on the recommendation of the first four.

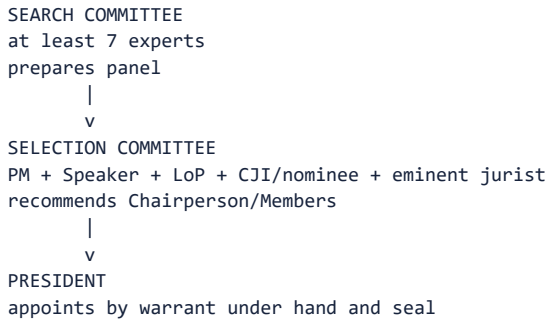
[FACT] Section 4 names the **Leader of Opposition in the House of the People**. It does not insert the leader of the single largest opposition party as a statutory substitute.

[FACT] Section 4(2) instead states that no appointment is invalid merely because of a vacancy in the Selection Committee.

[FACT] The Selection Committee constitutes a Search Committee of **at least seven persons** of standing and relevant expertise. Not less than fifty per cent of its members must come from the same listed diversity categories. The Selection Committee may consider a person not recommended by the Search Committee.

[ANALYSIS] Search identifies a panel; Selection makes the recommendation; the President makes the appointment. Treating the Search Committee as the final appointing body reverses the statutory sequence.

Visual 12 - Appointment Chain



Caption: Search, recommendation and appointment are three different legal acts.

Visual 13 - Selection Committee: Exact Seats

Seat	Status under section 4	Frequent confusion
Prime Minister	Chairperson	Not President
Lok Sabha Speaker	Member	Not Rajya Sabha Chairman
Lok Sabha Leader of Opposition	Member	Current text contains no largest-party substitute
CJI or CJI-nominated Supreme Court Judge	Member	Not any judge chosen by executive
Eminent jurist	President nominates on recommendation of first four	Not independently chosen by President

Caption: Appointment questions often swap Speaker/Chairman, LoP/opposition leader or CJI/nominee.

Visual 14 - Search vs Selection

Feature	Search Committee	Selection Committee
Size	At least seven	Five statutory positions
Main task	Prepare panel	Select and recommend
Diversity rule	Not less than 50% listed categories	No identical quota stated for committee seats
Expertise	Anti-corruption, administration, vigilance, policy, finance, law, management and useful fields	Institutional office-holders plus eminent jurist
Binding effect	Panel is not exclusive	May consider person outside Search panel

Caption: Search-panel eligibility is not final-selection entitlement.

Visual 15 - Vacancy Rule and Common Cause v. Union of India (2017)

NO RECOGNISED LoP / OTHER VACANCY

Section 4(2): appointment not invalid merely because of vacancy

Common Cause v. Union of India (2017):

truncated Selection Committee can appoint eminent jurist, constitute Search Committee and recommend appointments

RESULT:

Act remains workable; vacancy cannot suspend enforcement

Caption: The judicial solution was workability through the vacancy clause, not rewriting a substitute into section 4.

Prelims trap

Section 4(2) prevents a vacancy from invalidating appointment; Common Cause did not rewrite the Act to create a permanent largest-opposition-party substitute.

Mains use

Use **Section 4 Selection Committee and Search Committee; Common Cause v. Union of India, judgment dated 27 April 2017**. to prove the claim, then explain that executive, legislative, judicial and eminent-jurist participation broadens input, while the Search Committee supplies an expert screening layer.

Closing recall flow - APPOINTMENT: SELECTION COMMITTEE AND SEARCH COMMITTEE

APPOINTMENT: SELECTION COMMITTEE AND SEARCH COMMITTEE

-> CLAIM: Appointment is formally plural but not free from executive influence.

-> EVIDENCE: Section 4 Selection Committee and Search Committee; Common Cause v. Union of India, judgment dated 27 April 2017.

-> ANALYSIS: Executive, legislative, judicial and eminent-jurist participation broadens input, while the Search Committee supplies an expert screening layer.

-> LIMIT: Section 4(2) prevents a vacancy from invalidating appointment; Common Cause did not rewrite the Act to create a permanent largest-opposition-party substitute.

Recap: Appointment is formally plural but not free from executive influence. Section 4(2) prevents a vacancy from invalidating appointment; Common Cause did not rewrite the Act to create a permanent largest-opposition-party substitute.

SESSION 7 - TENURE, REAPPOINTMENT AND POST-TENURE RESTRICTIONS

VISUAL FIRST

TENURE, REAPPOINTMENT AND POST-TENURE RESTRICTIONS

CORE: Fixed tenure and post-tenure restrictions protect decisional independence by reducing renewal and reward incentives.

↓
v

AUTHORITY: Sections 6 and 8: five years or age 70, resignation to the President, reappointment bar and specified post-office restrictions.

↓
v

WHY IT MATTERS: A non-renewable term limits bargaining for continuation, and the five-year election bar reduces immediate political conversion.

↓
v

LIMIT: A Member may become Chairperson only within the aggregate five-year Lokpal tenure cap.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Fixed tenure and post-office restrictions reduce patronage risks.

Technical definition: Tenure is five years or age seventy, subject to the Act's aggregate-tenure rule for a Member later appointed Chairperson; reappointment and post-tenure offices are statutorily restricted.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Fixed tenure and post-office restrictions reduce patronage risks.

MUST-WRITE KEYWORDS

- **tenure**
- **age seventy**
- **reappointment**
- **post-tenure**

Claim -> named evidence -> analysis -> qualification

- **Claim:** Fixed tenure and post-tenure restrictions protect decisional independence by reducing renewal and reward incentives.
- **Named evidence:** Sections 6 and 8: five years or age 70, resignation to the President, reappointment bar and specified post-office restrictions.
- **Analysis:** A non-renewable term limits bargaining for continuation, and the five-year election bar reduces immediate political conversion.
- **Qualification:** A Member may become Chairperson only within the aggregate five-year Lokpal tenure cap.

Evidence

[FACT] Section 6 fixes the term at **five years from entering office or until age seventy, whichever is earlier**.

[FACT] The Chairperson or Member may resign to the President or be removed under section 37.

[FACT] On leaving office, the Chairperson and every Member are ineligible for reappointment as Chairperson or Member, diplomatic assignment, Union Territory administrator or another presidential-warrant assignment, and further office of profit under Union or State government.

[FACT] They cannot contest election as President, Vice-President, MP, State legislator, Municipality or Panchayat member for five years after relinquishing office.

[FACT] A Member may be appointed Chairperson if the aggregate tenure as Member and Chairperson does not exceed five years.

Visual 16 - Tenure Clock

ENTRY INTO OFFICE
|
+--> five-year period ends
|
+--> age 70 reached
|
EARLIER EVENT ENDS TENURE

EXCEPTIONAL CAREER MOVE:
Member -> Chairperson permitted
only if aggregate Lokpal tenure <= 5 years

Caption: "Five years" is subject to the age ceiling and aggregate-tenure rule.

Visual 17 - Post-Tenure Firewall

Restriction	Duration/form
Reappointment to Lokpal	Ineligible, subject to Member-to-Chair aggregate exception
Diplomatic/UT administrator/specified presidential appointment	Ineligible
Government office of profit	Ineligible
Election to named public offices	Five-year cooling-off period

Caption: Fixed tenure is paired with restrictions designed to reduce expectation of executive reward.

Prelims trap

A Member may become Chairperson only within the aggregate five-year Lokpal tenure cap.

Mains use

Use **Sections 6 and 8: five years or age 70, resignation to the President, reappointment bar and specified post-office restrictions**. to prove the claim, then explain that a non-renewable term limits bargaining for continuation, and the five-year election bar reduces immediate political conversion.

Closing recall flow - TENURE, REAPPOINTMENT AND POST-TENURE RESTRICTIONS

TENURE, REAPPOINTMENT AND POST-TENURE RESTRICTIONS

- > CLAIM: Fixed tenure and post-tenure restrictions protect decisional independence by reducing renewal and reward incentives.
- > EVIDENCE: Sections 6 and 8: five years or age 70, resignation to the President, reappointment bar and specified post-office restrictions.
- > ANALYSIS: A non-renewable term limits bargaining for continuation, and the five-year election bar reduces immediate political conversion.
- > LIMIT: A Member may become Chairperson only within the aggregate five-year Lokpal tenure cap.

Recap: Fixed tenure and post-tenure restrictions protect decisional independence by reducing renewal and reward incentives. A Member may become Chairperson only within the aggregate five-year Lokpal tenure cap.

SESSION 8 - REMOVAL AND SUSPENSION UNDER SECTION 37

VISUAL FIRST

REMOVAL AND SUSPENSION UNDER SECTION 37

CORE: Removal combines a high-threshold judicial route for misbehaviour with narrow direct presidential grounds.

|
v

AUTHORITY: Section 37: petition signed by at least 100 MPs, Presidential reference, Supreme Court inquiry, suspension, insolvency, paid outside employment and infirmity.

|
v

WHY IT MATTERS: Judicial inquiry protects officeholders from ordinary executive dismissal while direct grounds address objective incapacity or incompatibility.

|
v

LIMIT: Lokpal cannot inquire into a complaint against its own Chairperson or Member, and section 37 must not be confused with other commissions' removal clauses.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: For removal on misbehaviour, the route is: a petition signed by at least one hundred Members of Parliament; Presidential reference to the Supreme Court; Supreme Court inquiry and report that removal is warranted; Presidential removal order.

Technical definition: Section 37 has its own threshold, grounds and judicial-reference architecture.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

For removal on misbehaviour, the route is: a petition signed by at least one hundred Members of Parliament; Presidential reference to the Supreme Court; Supreme Court inquiry and report that removal is warranted; Presidential removal order.

MUST-WRITE KEYWORDS

- Removal
- Suspension Under Section 37
- misbehaviour
- one hundred Members of Parliament
- Section 37(2)

Claim -> named evidence -> analysis -> qualification

- **Claim:** Removal combines a high-threshold judicial route for misbehaviour with narrow direct presidential grounds.
- **Named evidence:** Section 37: petition signed by at least 100 MPs, Presidential reference, Supreme Court inquiry, suspension, insolvency, paid outside employment and infirmity.
- **Analysis:** Judicial inquiry protects officeholders from ordinary executive dismissal while direct grounds address objective incapacity or incompatibility.
- **Qualification:** Lokpal cannot inquire into a complaint against its own Chairperson or Member, and section 37 must not be confused with other commissions' removal clauses.

Evidence

[FACT] Lokpal cannot inquire into a complaint against its own Chairperson or Member.

[FACT] For removal on **misbehaviour**, the route is: a petition signed by at least **one hundred Members of Parliament**; Presidential reference to the Supreme Court; Supreme Court inquiry and report that removal is warranted; Presidential removal order.

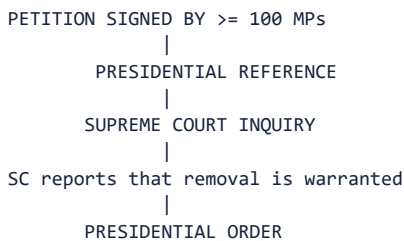
[FACT] Once a reference is made, the President may suspend the Chairperson or Member on the Supreme Court's recommendation or interim order until the final report is acted upon.

[FACT] The President may directly remove a Chairperson or Member who is adjudged insolvent, engages in paid employment outside official duties during the term, or is considered unfit by reason of infirmity of mind or body.

[FACT] Interest in a Union or State government contract, or participation in its profit/benefit beyond ordinary incorporated-company membership, is deemed misbehaviour.

[LIMIT] Do not import the removal procedures of CVC, NHRC or Election Commission. Section 37 has its own threshold, grounds and judicial-reference architecture.

Visual 18 - Misbehaviour Removal Route



PENDING REFERENCE:
suspension only on SC recommendation/interim order

Caption: The Supreme Court inquiry is central to the misbehaviour route.

Visual 19 - Direct Grounds vs Inquiry Ground

Route	Ground	Supreme Court inquiry?
Section 37(2)	Misbehaviour	Yes
Section 37(4)(a)	Insolvency	Not under subsection (2) route
Section 37(4)(b)	Paid outside employment during term	Not under subsection (2) route
Section 37(4)(c)	Mental or physical infirmity rendering person unfit	Not under subsection (2) route
Section 37(5)	Government-contract interest	Deemed misbehaviour; subsection (2) route

Caption: Not every removal ground uses the same procedure.

Prelims trap

Lokpal cannot inquire into a complaint against its own Chairperson or Member, and section 37 must not be confused with other commissions' removal clauses.

Mains use

Use **Section 37: petition signed by at least 100 MPs, Presidential reference, Supreme Court inquiry, suspension, insolvency, paid outside employment and infirmity**. to prove the claim, then explain that judicial inquiry protects officeholders from ordinary executive dismissal while direct grounds address objective incapacity or incompatibility.

Closing recall flow - REMOVAL AND SUSPENSION UNDER SECTION 37

REMOVAL AND SUSPENSION UNDER SECTION 37

-> CLAIM: Removal combines a high-threshold judicial route for misbehaviour with narrow direct presidential grounds.

-> EVIDENCE: Section 37: petition signed by at least 100 MPs, Presidential reference, Supreme Court inquiry, suspension, insolvency, paid outside employment and infirmity.

-> ANALYSIS: Judicial inquiry protects officeholders from ordinary executive dismissal while direct grounds address objective incapacity or incompatibility.

-> LIMIT: Lokpal cannot inquire into a complaint against its own Chairperson or Member, and section 37 must not be confused with other commissions' removal clauses.

Recap: Removal combines a high-threshold judicial route for misbehaviour with narrow direct presidential grounds. Lokpal cannot inquire into a complaint against its own Chairperson or Member, and section 37 must not be confused with other commissions' removal clauses.

SESSION 9 - JURISDICTION: PERSONS AND ENTITIES COVERED

VISUAL FIRST

JURISDICTION: PERSONS AND ENTITIES COVERED

CORE: Lokpal jurisdiction is wide across public office but conditional for institutions and private legal forms.

|
v

AUTHORITY: Section 14(1)(a)-(h) and section 14(3).

|
v

WHY IT MATTERS: The Act follows persons connected with Union public service and specified government-linked or foreign-funded entities, and may reach abettors, bribe-givers, bribe-takers and conspirators connected to a covered allegation.

|
v

LIMIT: It does not create general jurisdiction over every private person or entity; statutory funding, office, offence and consent conditions remain.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 14(3) can reach another person involved in abetting, bribe giving, bribe taking or conspiracy connected with a corruption allegation against a covered person, subject to State consent where the person serves State affairs.

Technical definition: Former public servants remain covered for conduct during the period in which they held or served in the relevant capacity.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Section 14(3) can reach another person involved in abetting, bribe giving, bribe taking or conspiracy connected with a corruption allegation against a covered person, subject to State consent where the person serves State affairs.

MUST-WRITE KEYWORDS

- Jurisdiction
- Persons
- Entities Covered
- Sitting/former Prime Minister
- Special exclusions and procedure

Claim -> named evidence -> analysis -> qualification

- **Claim:** Lokpal jurisdiction is wide across public office but conditional for institutions and private legal forms.
- **Named evidence:** Section 14(1)(a)-(h) and section 14(3).
- **Analysis:** The Act follows persons connected with Union public service and specified government-linked or foreign-funded entities, and may reach abettors, bribe-givers, bribe-takers and conspirators connected to a covered allegation.
- **Qualification:** It does not create general jurisdiction over every private person or entity; statutory funding, office, offence and consent conditions remain.

Evidence

[FACT] Section 14 covers current and former Prime Ministers, Union Ministers, Members of Parliament, Group A-D Union officials and specified persons in statutory, financed or controlled bodies.

[FACT] Former public servants remain covered for conduct during the period in which they held or served in the relevant capacity.

[FACT] Officers of entities established by an Act of Parliament, or wholly or partly financed or controlled by the Central Government, fall within clause (f).

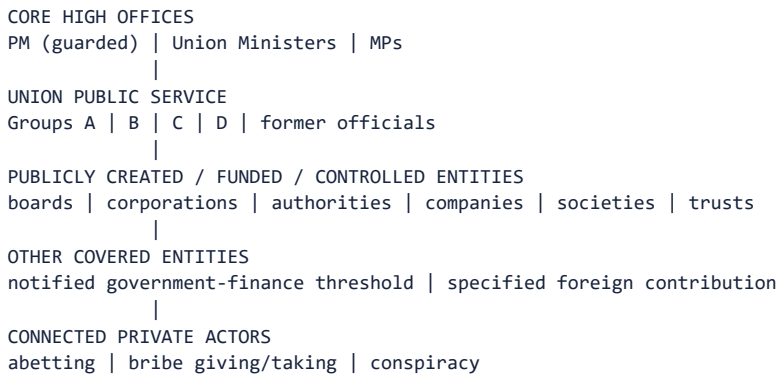
[FACT] Clause (g) reaches officers of other societies, associations or trusts wholly or partly financed by Government where annual income exceeds the amount notified by the Central Government. Because that threshold can be notification-dependent, it is not frozen here.

[FACT] Clause (h) reaches officers of other societies, associations or trusts receiving foreign-source donations exceeding **ten lakh rupees in a year or a higher amount notified by the Central Government**.

[FACT] Section 14(3) can reach another person involved in abetting, bribe giving, bribe taking or conspiracy connected with a corruption allegation against a covered person, subject to State consent where the person serves State affairs.

[FACT] The definition of public servant excludes persons for whom jurisdiction or procedure lies under the Army, Air Force, Navy or Coast Guard Acts.

Visual 20 - Jurisdiction Concentric Map



Caption: Jurisdiction follows statutory category and allegation, not the public prominence of the person alone.

Visual 21 - Coverage Matrix

Category	Covered?	Qualification
Sitting/former Prime Minister	Yes	Special exclusions and procedure
Sitting/former Union Minister	Yes	Ordinary statutory procedure subject to Act
Sitting/former MP	Yes	Article 105(2) speech/vote exclusion
Group A-D Union official	Yes	CVC routing differs by category
Former Union official	Yes	Conduct must relate to period in covered capacity
State official	Not automatically	Consent provisions may apply
Armed-forces personnel governed by named service Acts	Excluded from Act's public-servant definition for that jurisdiction/procedure	Special legal systems
Any NGO merely because registered	No	Funding/control/foreign-contribution conditions matter

Caption: Registration alone is not the jurisdictional test for a private society or trust.

Visual 22 - Current/Former Test

ALLEGED ACT DATE

|
Was the person then holding/serving in a section 14 capacity?

|
yes + complaint within limitation -> former status does not erase jurisdiction
no -> present fame or later office cannot create retrospective category coverage

Caption: The Act attaches the allegation to the period of covered public service.

Prelims trap

It does not create general jurisdiction over every private person or entity; statutory funding, office, offence and consent conditions remain.

Mains use

Use **Section 14(1)(a)-(h) and section 14(3)**. to prove the claim, then explain that the Act follows persons connected with Union public service and specified government-linked or foreign-funded entities, and may reach abettors, bribe-givers, bribe-takers and conspirators connected to a covered allegation.

Closing recall flow - JURISDICTION: PERSONS AND ENTITIES COVERED

JURISDICTION: PERSONS AND ENTITIES COVERED

-> CLAIM: Lokpal jurisdiction is wide across public office but conditional for institutions and private legal forms.

-> EVIDENCE: Section 14(1)(a)-(h) and section 14(3).

-> ANALYSIS: The Act follows persons connected with Union public service and specified government-linked or foreign-funded entities, and may reach abettors, bribe-givers, bribe-takers and conspirators connected to a covered allegation.

-> LIMIT: It does not create general jurisdiction over every private person or entity; statutory funding, office, offence and consent conditions remain.

Recap: Lokpal jurisdiction is wide across public office but conditional for institutions and private legal forms. It does not create general jurisdiction over every private person or entity; statutory funding, office, offence and consent conditions remain.

SESSION 10 - PRIME MINISTER: INCLUDED, BUT SPECIALLY RING-FENCED

VISUAL FIRST

PRIME MINISTER: INCLUDED, BUT SPECIALLY RING-FENCED

CORE: The Prime Minister is included through a specially filtered jurisdiction, not granted blanket immunity.

|
v
AUTHORITY: Section 14(1)(a): five excluded subject domains, full-bench consideration, two-thirds approval, in-camera inquiry and non-publication of dismissed-inquiry records.

|
v
WHY IT MATTERS: The design balances accountability of the head of government against risks to sensitive sovereign functions and politically weaponised complaints.

|
v
LIMIT: The exclusions are subject-matter exclusions, not a general personal exemption from anti-corruption law.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 14(1)(a) includes a person who is or has been Prime Minister.

Technical definition: Section 14 includes a serving or former Prime Minister but applies subject exclusions, a full-bench supermajority threshold, in-camera proceedings and special confidentiality.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Section 14(1)(a) includes a person who is or has been Prime Minister.

MUST-WRITE KEYWORDS

- Prime Minister
- Included
- But Specially Ring-Fenced
- two-thirds of its Members
- in camera
- Inquiry itself

Claim -> named evidence -> analysis -> qualification

- **Claim:** The Prime Minister is included through a specially filtered jurisdiction, not granted blanket immunity.
- **Named evidence:** Section 14(1)(a): five excluded subject domains, full-bench consideration, two-thirds approval, in-camera inquiry and non-publication of dismissed-inquiry records.
- **Analysis:** The design balances accountability of the head of government against risks to sensitive sovereign functions and politically weaponised complaints.
- **Qualification:** The exclusions are subject-matter exclusions, not a general personal exemption from anti-corruption law.

Evidence

[FACT] Section 14(1)(a) includes a person who is or has been Prime Minister.

[FACT] Lokpal cannot inquire into a corruption allegation against the Prime Minister insofar as it relates to:

- international relations;
- external and internal security;
- public order;
- atomic energy; and
- space.

[FACT] Initiation requires a **full bench consisting of the Chairperson and all Members**, and at least **two-thirds of its Members** must approve.

[FACT] The inquiry must be held **in camera**. If Lokpal concludes that the complaint deserves dismissal, the inquiry records shall not be published or made available to anyone.

[FACT] The Complaint Rules, 2020 require a complaint against the Prime Minister to be decided by that full bench in the first instance at the admission stage.

[ANALYSIS] The model is neither total immunity nor ordinary parity. It combines substantive exclusions, collective decision-making, a supermajority, confidentiality and record consequences.

Visual 23 - Prime Minister Safeguard Screen

COMPLAINT AGAINST PM
|
Does allegation relate to any excluded domain?
IR | external/internal security | public order | atomic energy | space
|
yes -> no Lokpal inquiry into that matter
no -> full bench at admission/initiation stage
|
at least two-thirds approval?
|
no -> inquiry not initiated
yes -> in-camera inquiry

Caption: Subject exclusion and supermajority approval are cumulative safeguards.

Visual 24 - PM Record Consequences

Stage/outcome	Publicity rule
Inquiry itself	In camera
Complaint dismissed	Inquiry records not published or made available to anyone
Matter proceeds	Controlled by Act, Rules and applicable confidentiality orders

Caption: The special record-destruction/publication consequence applies to dismissal, not as a general formula for all Lokpal cases.

Prelims trap

The exclusions are subject-matter exclusions, not a general personal exemption from anti-corruption law.

Mains use

Use **Section 14(1)(a): five excluded subject domains, full-bench consideration, two-thirds approval, in-camera inquiry and non-publication of dismissed-inquiry records.** to prove the claim, then explain that the design balances accountability of the head of government against risks to sensitive sovereign functions and politically weaponised complaints.

Closing recall flow - PRIME MINISTER: INCLUDED, BUT SPECIALLY RING-FENCED

PRIME MINISTER: INCLUDED, BUT SPECIALLY RING-FENCED
-> CLAIM: The Prime Minister is included through a specially filtered jurisdiction, not granted blanket immunity.
-> EVIDENCE: Section 14(1)(a): five excluded subject domains, full-bench consideration, two-thirds approval, in-camera inquiry and non-publication of dismissed-inquiry records.
-> ANALYSIS: The design balances accountability of the head of government against risks to sensitive sovereign functions and politically weaponised complaints.
-> LIMIT: The exclusions are subject-matter exclusions, not a general personal exemption from anti-corruption law.

Recap: The Prime Minister is included through a specially filtered jurisdiction, not granted blanket immunity. The exclusions are subject-matter exclusions, not a general personal exemption from anti-corruption law.

SESSION 11 - MPS, ARTICLE 105(2) AND THE BRIBERY BOUNDARY

VISUAL FIRST

MPS, ARTICLE 105(2) AND THE BRIBERY BOUNDARY

CORE: Parliamentary privilege protects legislative speech and voting functions, not a corrupt bargain.

|

v

AUTHORITY: Article 105(2), section 14(2), and the seven-judge decision in *Sita Soren v. Union of India*, 2024 INSC 161.

|

v

WHY IT MATTERS: *Sita Soren* overruled the bribery-immunity rule in *P.V. Narasimha Rao* because accepting a bribe is not essential to legislative deliberation and is complete independently of the later speech or vote.

|

v

LIMIT: The judgment did not abolish Article 105(2); genuine speech and votes remain protected from ordinary court proceedings.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The provisions can be harmonised through a functional boundary: bona fide speech and vote remain protected, but a separate criminal bargain to sell that function is not converted into protected legislative activity.

Technical definition: Section 14(2) preserves Article 105(2) protection for parliamentary speech and votes, while *Sita Soren* (2024) holds that bribery itself is not privileged.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

It held that a legislator who accepts a bribe for a speech or vote receives no Article 105/194 immunity; bribery is complete on acceptance.

MUST-WRITE KEYWORDS

- **Mps**
- **Article 105(2)**
- **The Bribery Boundary**
- **Section 14(2) exclusion applies**
- **Continue**
- ***Sita Soren* (2024) denies privilege immunity**

Claim -> named evidence -> analysis -> qualification

- **Claim:** Parliamentary privilege protects legislative speech and voting functions, not a corrupt bargain.
- **Named evidence:** Article 105(2), section 14(2), and the seven-judge decision in *Sita Soren v. Union of India*, 2024 INSC 161.
- **Analysis:** *Sita Soren* overruled the bribery-immunity rule in *P.V. Narasimha Rao* because accepting a bribe is not essential to legislative deliberation and is complete independently of the later speech or vote.
- **Qualification:** The judgment did not abolish Article 105(2); genuine speech and votes remain protected from ordinary court proceedings.

Evidence

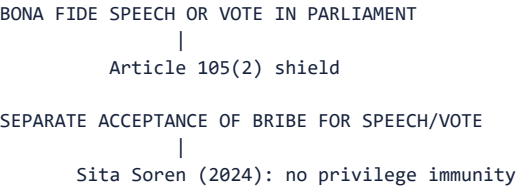
[FACT] Section 14(2) bars Lokpal inquiry into a corruption allegation against an MP in respect of anything said or a vote given in Parliament or a committee, where Article 105(2) applies.

[FACT] In ***Sita Soren v. Union of India* (2024) (2024 INSC 161)**, a unanimous seven-judge Supreme Court bench overruled the relevant majority position in *P.V. Narasimha Rao*. It held that a legislator who accepts a bribe for a speech or vote receives no Article 105/194 immunity; bribery is complete on acceptance.

[ANALYSIS] The provisions can be harmonised through a functional boundary: bona fide speech and vote remain protected, but a separate criminal bargain to sell that function is not converted into protected legislative activity.

[LIMIT] *Sita Soren (2024)* did not abolish parliamentary freedom of speech or ordinary vote immunity. It removed the claimed shield for bribery.

Visual 25 - Article 105(2) Boundary



Caption: Privilege protects the legislative function, not its corrupt sale.

Visual 26 - Lokpal and Privilege Test

Question	If yes	If no
Is the allegation merely about protected speech/vote?	Section 14(2) exclusion applies	Continue
Is there an independent allegation of bribery/bargain?	<i>Sita Soren (2024)</i> denies privilege immunity	Ordinary jurisdiction test
Is the person otherwise covered by section 14?	Lokpal process may apply	No Lokpal jurisdiction
Is complaint timely and prescribed?	Proceed to scrutiny	Defect/limitation route

Caption: "MPs are outside Lokpal" and "privilege never matters" are both wrong.

Prelims trap

The judgment did not abolish Article 105(2); genuine speech and votes remain protected from ordinary court proceedings.

Mains use

Use **Article 105(2), section 14(2), and the seven-judge decision in *Sita Soren v. Union of India, 2024 INSC 161***. to prove the claim, then explain that *Sita Soren* overruled the bribery-immunity rule in *P.V. Narasimha Rao* because accepting a bribe is not essential to legislative deliberation and is complete independently of the later speech or vote.

Closing recall flow - MPS, ARTICLE 105(2) AND THE BRIBERY BOUNDARY

- MPS, ARTICLE 105(2) AND THE BRIBERY BOUNDARY
- > CLAIM: Parliamentary privilege protects legislative speech and voting functions, not a corrupt bargain.
 - > EVIDENCE: Article 105(2), section 14(2), and the seven-judge decision in *Sita Soren v. Union of India, 2024 INSC 161*.
 - > ANALYSIS: *Sita Soren* overruled the bribery-immunity rule in *P.V. Narasimha Rao* because accepting a bribe is not essential to legislative deliberation and is complete independently of the later speech or vote.
 - > LIMIT: The judgment did not abolish Article 105(2); genuine speech and votes remain protected from ordinary court proceedings.

Recap: Parliamentary privilege protects legislative speech and voting functions, not a corrupt bargain. The judgment did not abolish Article 105(2); genuine speech and votes remain protected from ordinary court proceedings.

SESSION 12 - STATE-CONNECTED PERSONS AND CONSENT

VISUAL FIRST

STATE-CONNECTED PERSONS AND CONSENT

CORE: Federal consent limits Lokpal action against specified officers serving in State-connected settings.



AUTHORITY: Proviso to section 14(1)(f) and proviso to section 14(3).



WHY IT MATTERS: Consent respects the division between Union anti-corruption jurisdiction and State administrative control when covered conduct crosses institutional settings.



LIMIT: Consent is not a blanket rule for every Lokpal complaint and must be tied to the exact statutory category.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 14 contains consent protections where a person connected with Union service or a Union-linked entity is working in connection with State affairs or a State-established/financed/controlled entity.

Technical definition: The State-consent provisos qualify specified cross-posted officers and connected private participants where the statutory facts link the matter to State service.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Section 14 contains consent protections where a person connected with Union service or a Union-linked entity is working in connection with State affairs or a State-established/financed/controlled entity.

MUST-WRITE KEYWORDS

- Consent
- Section
- Union
- Union-linked
- These provisions recognise that Lokpal
- These

Claim -> named evidence -> analysis -> qualification

- **Claim:** Federal consent limits Lokpal action against specified officers serving in State-connected settings.
- **Named evidence:** Proviso to section 14(1)(f) and proviso to section 14(3).
- **Analysis:** Consent respects the division between Union anti-corruption jurisdiction and State administrative control when covered conduct crosses institutional settings.
- **Qualification:** Consent is not a blanket rule for every Lokpal complaint and must be tied to the exact statutory category.

Evidence

[FACT] Section 14 contains consent protections where a person connected with Union service or a Union-linked entity is working in connection with State affairs or a State-established/financed/controlled entity.

[FACT] Section 14(3) also requires State consent before action against a connected person serving in State affairs.

[ANALYSIS] These provisions recognise that Lokpal is a Union institution and cannot automatically convert every State-linked corruption allegation into central jurisdiction.

[LIMIT] This is distinct from DSPE Act section 6 consent for CBI territorial operation. An answer should identify which consent rule is being discussed.

Visual 27 - Two Consent Questions

QUESTION 1: DOES LOKPAL HAVE SECTION 14 JURISDICTION OVER A STATE-CONNECTED PERSON?

-> apply Lokpal Act consent provisos

QUESTION 2: CAN DSPE/CBI EXERCISE POLICE POWERS IN A STATE TERRITORY?

-> apply DSPE Act sections 5-6 / court route

NEVER MERGE THE TWO TESTS

Caption: Person-based Lokpal consent and territory-based DSPE consent solve different federal problems.

Prelims trap

Consent is not a blanket rule for every Lokpal complaint and must be tied to the exact statutory category.

Mains use

Use **Proviso to section 14(1)(f) and proviso to section 14(3)**. to prove the claim, then explain that consent respects the division between Union anti-corruption jurisdiction and State administrative control when covered conduct crosses institutional settings.

Closing recall flow - STATE-CONNECTED PERSONS AND CONSENT

STATE-CONNECTED PERSONS AND CONSENT

-> CLAIM: Federal consent limits Lokpal action against specified officers serving in State-connected settings.

-> EVIDENCE: Proviso to section 14(1)(f) and proviso to section 14(3).

-> ANALYSIS: Consent respects the division between Union anti-corruption jurisdiction and State administrative control when covered conduct crosses institutional settings.

-> LIMIT: Consent is not a blanket rule for every Lokpal complaint and must be tied to the exact statutory category.

Recap: Federal consent limits Lokpal action against specified officers serving in State-connected settings. Consent is not a blanket rule for every Lokpal complaint and must be tied to the exact statutory category.

SESSION 13 - COMPLAINT ENTRY: FORM, IDENTITY, AFFIDAVIT AND SCRUTINY

VISUAL FIRST

COMPLAINT ENTRY: FORM, IDENTITY, AFFIDAVIT AND SCRUTINY

CORE: A Lokpal matter begins with a prescribed, attributable complaint rather than an unstructured allegation.

|

v

AUTHORITY: Section 2(1)(e), section 20 and Lokpal (Complaint) Rules, 2020, Form I and annexures.

|

v

WHY IT MATTERS: Identity, affidavit, particulars and supporting material enable jurisdictional and procedural scrutiny before scarce investigative powers are engaged.

|

v

LIMIT: A curable filing defect is not proof that the allegation is false, and the central Act confers no general express suo-motu corruption jurisdiction.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A complaint must identify the complainant, the covered public servant, the alleged corruption offence and the supporting material in the prescribed form.

Technical definition: Required annexures include identity proof, organisational registration/incorporation and authorisation where relevant, the specified affidavit, and a duly signed detailed statement of allegation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Complaint scrutiny is a gateway to jurisdiction and fair process, not a shortcut to deciding truth or guilt.

MUST-WRITE KEYWORDS

- Complaint Entry
- Form
- Identity
- Affidavit
- Scrutiny
- Illegible

Claim -> named evidence -> analysis -> qualification

- **Claim:** A Lokpal matter begins with a prescribed, attributable complaint rather than an unstructured allegation.
- **Named evidence:** Section 2(1)(e), section 20 and Lokpal (Complaint) Rules, 2020, Form I and annexures.
- **Analysis:** Identity, affidavit, particulars and supporting material enable jurisdictional and procedural scrutiny before scarce investigative powers are engaged.
- **Qualification:** A curable filing defect is not proof that the allegation is false, and the central Act confers no general express suo-motu corruption jurisdiction.

Evidence

[FACT] The Lokpal (Complaint) Rules, 2020 require the prescribed form. Filing may be electronic, by post or in person.

[FACT] Where filed electronically, a hard copy must be submitted within fifteen days; the Rules also state that a complete electronic complaint should not be kept pending merely for that reason.

[FACT] A complaint ordinarily may be in English, but Lokpal may entertain a complaint in an Eighth Schedule language.

[FACT] Required annexures include identity proof, organisational registration/incorporation and authorisation where relevant, the specified affidavit, and a duly signed detailed statement of allegation.

[FACT] The Lokpal (Complaint) Rules, 2020 prescribe Form I, filing modes, identity and supporting annexures, an affidavit and Registry scrutiny. The Rules regulate entry into the statutory process; they do not convert a defective filing into a merits finding.

[FACT] Rule 4 permits in-limine disposal where content is illegible, vague or ambiguous, trivial or frivolous, lacks an allegation against a public servant, is time-barred, or concerns a cause pending before another court, tribunal or authority.

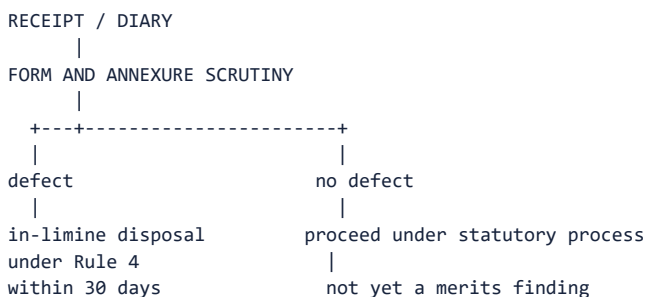
[LIMIT] A formal defect is not a finding that the allegation is false. Defect cure, maintainability, prima facie assessment and final adjudication are different.

Visual 28 - Complaint Entry Checklist

PRESCRIBED FORM
 +
 IDENTITY PROOF
 +
 AFFIDAVIT
 +
 SIGNED DETAILED ALLEGATION
 +
 ORGANISATIONAL AUTHORITY DOCUMENTS (if applicable)
 +
 FILING MODE REQUIREMENTS
 =
 READY FOR REGISTRY SCRUTINY

Caption: The Act does not create an anonymous-complaint channel.

Visual 29 - Scrutiny Funnel



Caption: Registry scrutiny filters filing compliance; the bench controls legal disposition.

Visual 30 - In-Limine Disposal Grounds

Ground under Rule 4	Why it matters	Qualification
Illegible	No workable allegation	Curable form issue may differ
Vague/ambiguous	No determinate case	Must not substitute speculation
Trivial/frivolous	Statutory filter	"Unproved" is not automatically frivolous
No allegation against public servant	Outside complaint definition	Connected-person rule may still require analysis
Beyond section 53	Seven-year bar	Date of alleged offence controls
Cause pending elsewhere	Avoid parallel process	Apply exact pendency facts

Caption: Screening protects process integrity but can also create access barriers if applied mechanically.

Prelims trap

A curable filing defect is not proof that the allegation is false, and the central Act confers no general express suo-motu corruption jurisdiction.

Mains use

Use **Section 2(1)(e), section 20 and Lokpal (Complaint) Rules, 2020, Form I and annexures**. to prove the claim, then explain that identity, affidavit, particulars and supporting material enable jurisdictional and procedural scrutiny before scarce investigative powers are engaged.

Closing recall flow - COMPLAINT ENTRY: FORM, IDENTITY, AFFIDAVIT AND SCRUTINY

COMPLAINT ENTRY: FORM, IDENTITY, AFFIDAVIT AND SCRUTINY

-> CLAIM: A Lokpal matter begins with a prescribed, attributable complaint rather than an unstructured allegation.

-> EVIDENCE: Section 2(1)(e), section 20 and Lokpal (Complaint) Rules, 2020, Form I and annexures.

-> ANALYSIS: Identity, affidavit, particulars and supporting material enable jurisdictional and procedural scrutiny before scarce investigative powers are engaged.

-> LIMIT: A curable filing defect is not proof that the allegation is false, and the central Act confers no general express suo-motu corruption jurisdiction.

Recap: A Lokpal matter begins with a prescribed, attributable complaint rather than an unstructured allegation. A curable filing defect is not proof that the allegation is false, and the central Act confers no general express suo-motu corruption jurisdiction.

SESSION 14 - PRELIMINARY INQUIRY IS NOT INVESTIGATION

VISUAL FIRST

PRELIMINARY INQUIRY IS NOT INVESTIGATION

CORE: Preliminary inquiry tests whether a prima facie case exists; investigation gathers evidence for criminal process.

|

v

AUTHORITY: Section 20(1)-(3).

|

v

WHY IT MATTERS: The distinction protects a public servant from automatic criminal investigation while preserving direct investigation where Lokpal already finds a prima facie case after seeking an explanation.

|

v

LIMIT: Neither stage determines guilt, and search or seizure need not be defeated by advance explanation.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Preliminary inquiry is a threshold assessment.

Technical definition: Investigation is the evidence-gathering criminal-process stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Preliminary inquiry is a threshold assessment.

MUST-WRITE KEYWORDS

- Preliminary Inquiry Is Not Investigation
- preliminary inquiry
- investigation
- Purpose
- Determine prima facie case
- Collect evidence for criminal report

Claim -> named evidence -> analysis -> qualification

- **Claim:** Preliminary inquiry tests whether a prima facie case exists; investigation gathers evidence for criminal process.
- **Named evidence:** Section 20(1)-(3).
- **Analysis:** The distinction protects a public servant from automatic criminal investigation while preserving direct investigation where Lokpal already finds a prima facie case after seeking an explanation.
- **Qualification:** Neither stage determines guilt, and search or seizure need not be defeated by advance explanation.

Evidence

[FACT] On receiving a complaint and deciding to proceed, Lokpal may order either:

- a **preliminary inquiry** by its Inquiry Wing or an agency, including DSPE, to ascertain whether a prima facie case exists; or
- an **investigation** by an agency, including DSPE, where a prima facie case exists.

[FACT] Before ordering investigation, Lokpal must call for the public servant's explanation to determine whether a prima facie case exists. This does not interfere with necessary search and seizure.

[ANALYSIS] Preliminary inquiry is a threshold assessment. Investigation is the evidence-gathering criminal-process stage. Calling both "investigation" hides different safeguards and outputs.

Visual 31 - Inquiry vs Investigation

Dimension	Preliminary inquiry	Investigation
Purpose	Determine prima facie case	Collect evidence for criminal report
Actors	Inquiry Wing, CVC or agency	CBI/DSPE or other investigating agency
Comments/hearing	Comments from public servant and competent authority; hearing before decision	Explanation before direct investigation; comments again at post-report stage
Output	Investigate, departmental action, closure	Court report + Lokpal copy; prosecution/closure/departmental route
Legal character	Screening/inquiry	Criminal investigation

Caption: An allegation surviving preliminary inquiry is still not proof of guilt.

Prelims trap

Neither stage determines guilt, and search or seizure need not be defeated by advance explanation.

Mains use

Use **Section 20(1)-(3)**. to prove the claim, then explain that the distinction protects a public servant from automatic criminal investigation while preserving direct investigation where Lokpal already finds a prima facie case after seeking an explanation.

Closing recall flow - PRELIMINARY INQUIRY IS NOT INVESTIGATION

PRELIMINARY INQUIRY IS NOT INVESTIGATION

-> CLAIM: Preliminary inquiry tests whether a prima facie case exists; investigation gathers evidence for criminal process.

-> EVIDENCE: Section 20(1)-(3).

-> ANALYSIS: The distinction protects a public servant from automatic criminal investigation while preserving direct investigation where Lokpal already finds a prima facie case after seeking an explanation.

-> LIMIT: Neither stage determines guilt, and search or seizure need not be defeated by advance explanation.

Recap: Preliminary inquiry tests whether a prima facie case exists; investigation gathers evidence for criminal process. Neither stage determines guilt, and search or seizure need not be defeated by advance explanation.

SESSION 15 - CVC ROUTING FOR GROUPS A-D

VISUAL FIRST

CVC ROUTING FOR GROUPS A-D

CORE: CVC performs a category-specific statutory routing role, not universal subordination to Lokpal.



AUTHORITY: First and second provisos to section 20(1), plus section 25(2).



WHY IT MATTERS: For Groups A and B, CVC's preliminary inquiry report returns to Lokpal; for Groups C and D, CVC proceeds under the CVC Act.



LIMIT: The arrangement concerns referred complaints and does not transfer all CVC functions to Lokpal.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The CVC performs category-specific preliminary-inquiry functions for Lokpal referrals.

Technical definition: Under section 20, Groups A and B reports return to Lokpal, while Groups C and D proceed through the CVC Act route; this is not universal CVC subordination.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The CVC performs category-specific preliminary-inquiry functions for Lokpal referrals.

MUST-WRITE KEYWORDS

- CVC
- Groups A and B
- Groups C and D
- section 20

Claim -> named evidence -> analysis -> qualification

- **Claim:** CVC performs a category-specific statutory routing role, not universal subordination to Lokpal.
- **Named evidence:** First and second provisos to section 20(1), plus section 25(2).
- **Analysis:** For Groups A and B, CVC's preliminary inquiry report returns to Lokpal; for Groups C and D, CVC proceeds under the CVC Act.
- **Qualification:** The arrangement concerns referred complaints and does not transfer all CVC functions to Lokpal.

Evidence

[FACT] If Lokpal decides to proceed through preliminary inquiry, section 20 requires reference of complaints or categories involving Groups A, B, C or D to the CVC by general or special order.

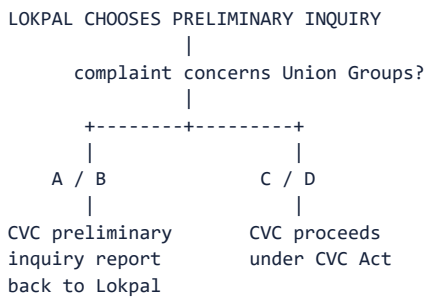
[FACT] For Groups A and B, the CVC conducts preliminary inquiry and submits its report to Lokpal.

[FACT] For Groups C and D, the CVC proceeds under the CVC Act, 2003.

[FACT] Section 25(2) requires the CVC to send statements at intervals directed by Lokpal about action on referred complaints; Lokpal may issue guidelines for effective and expeditious disposal.

[ANALYSIS] This is neither a simple hierarchy nor duplication. Lokpal remains the high-level complaint-routing institution, while CVC has category-specific preliminary-inquiry and vigilance functions.

Visual 32 - CVC Routing Tree



Caption: Group category changes where the report returns and which statutory route continues.

Prelims trap

The arrangement concerns referred complaints and does not transfer all CVC functions to Lokpal.

Mains use

Use **First and second provisos to section 20(1), plus section 25(2)**. to prove the claim, then explain that for Groups A and B, CVC's preliminary inquiry report returns to Lokpal; for Groups C and D, CVC proceeds under the CVC Act.

Closing recall flow - CVC ROUTING FOR GROUPS A-D

CVC ROUTING FOR GROUPS A-D

-> CLAIM: CVC performs a category-specific statutory routing role, not universal subordination to Lokpal.

-> EVIDENCE: First and second provisos to section 20(1), plus section 25(2).

-> ANALYSIS: For Groups A and B, CVC's preliminary inquiry report returns to Lokpal; for Groups C and D, CVC proceeds under the CVC Act.

-> LIMIT: The arrangement concerns referred complaints and does not transfer all CVC functions to Lokpal.

Recap: CVC performs a category-specific statutory routing role, not universal subordination to Lokpal. The arrangement concerns referred complaints and does not transfer all CVC functions to Lokpal.

SESSION 16 - TIMELINES AND NATURAL JUSTICE

VISUAL FIRST

TIMELINES AND NATURAL JUSTICE

CORE: Time limits are discipline devices reinforced by recorded reasons and hearing safeguards.

|

v

AUTHORITY: Sections 20(2), 20(3), 20(4), 20(5), 21 and 35(2).

|

v

WHY IT MATTERS: The 60-day report, 90-plus-90-day preliminary-inquiry framework, six-month investigation period and one-year trial target structure accountability across stages.

|

v

LIMIT: Investigation extensions may be up to six months at a time; statutory targets do not prove actual disposal within time.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Statutory timelines operate with recorded extensions and a hearing safeguard.

Technical definition: Preliminary inquiry is ordinarily completed within ninety days with reasons for extension, investigation follows its statutory period, and the public servant receives an opportunity before the post-report decision.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Statutory timelines operate with recorded extensions and a hearing safeguard.

MUST-WRITE KEYWORDS

- ninety days
- recorded reasons
- hearing
- natural justice

Claim -> named evidence -> analysis -> qualification

- **Claim:** Time limits are discipline devices reinforced by recorded reasons and hearing safeguards.
- **Named evidence:** Sections 20(2), 20(3), 20(4), 20(5), 21 and 35(2).
- **Analysis:** The 60-day report, 90-plus-90-day preliminary-inquiry framework, six-month investigation period and one-year trial target structure accountability across stages.
- **Qualification:** Investigation extensions may be up to six months at a time; statutory targets do not prove actual disposal within time.

Evidence

[FACT] During preliminary inquiry, the Inquiry Wing or agency collects material, seeks comments from the public servant and competent authority, and submits a report within **sixty days from receipt of the reference**.

[FACT] Every preliminary inquiry should ordinarily be completed within **ninety days**, extendable for recorded reasons by a further **ninety days** from receipt of the complaint.

[FACT] A bench of at least three Members considers the report, gives the public servant an opportunity of hearing and chooses investigation, departmental/other action, or closure with possible section 46 action.

[FACT] Investigation should be completed within **six months** from Lokpal's order. Lokpal may extend it by a further period not exceeding six months **at a time**, recording reasons.

[FACT] Section 21 protects a person other than the accused whose conduct is examined or reputation is likely to be prejudicially affected, by requiring a reasonable opportunity of hearing and defence evidence.

Visual 33 - Statutory Time Map



Caption: The 60-day report requirement, 90+90 inquiry framework and six-month investigation period are not interchangeable.

Visual 34 - Three-Member Bench Decision

Finding after preliminary inquiry	Possible action
Prima facie criminal case	Investigation by agency/DSPE
Service misconduct/other appropriate concern	Departmental or other action through competent authority
No prima facie case	Closure
False, frivolous or vexatious case meeting section 46 threshold	Proceed against complainant through lawful process

Caption: Closure and prosecution of the complainant are not automatic synonyms.

Prelims trap

Investigation extensions may be up to six months at a time; statutory targets do not prove actual disposal within time.

Mains use

Use **Sections 20(2), 20(3), 20(4), 20(5), 21 and 35(2)**. to prove the claim, then explain that the 60-day report, 90-plus-90-day preliminary-inquiry framework, six-month investigation period and one-year trial target structure accountability across stages.

Closing recall flow - TIMELINES AND NATURAL JUSTICE

TIMELINES AND NATURAL JUSTICE

- > CLAIM: Time limits are discipline devices reinforced by recorded reasons and hearing safeguards.
- > EVIDENCE: Sections 20(2), 20(3), 20(4), 20(5), 21 and 35(2).
- > ANALYSIS: The 60-day report, 90-plus-90-day preliminary-inquiry framework, six-month investigation period and one-year trial target structure accountability across stages.
- > LIMIT: Investigation extensions may be up to six months at a time; statutory targets do not prove actual disposal within time.

Recap: Time limits are discipline devices reinforced by recorded reasons and hearing safeguards. Investigation extensions may be up to six months at a time; statutory targets do not prove actual disposal within time.

SESSION 17 - INVESTIGATION, REPORT, SANCTION AND PROSECUTION

VISUAL FIRST

INVESTIGATION, REPORT, SANCTION AND PROSECUTION

CORE: Sanction and prosecution are gateways to trial, not findings of guilt.

|

v

AUTHORITY: Sections 20(6)-(8), 23 and 24.

|

v

WHY IT MATTERS: The investigation report reaches the jurisdictional court and Lokpal; a three-Member bench may authorise charge-sheet/prosecution, closure or departmental action.

|

v

LIMIT: Section 23(3) preserves constitutionally specified removal procedures, and section 24 separately governs findings concerning the Prime Minister, Union Ministers and MPs.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: "Sanction" is procedural authorisation to prosecute; it is not a merits verdict.

Technical definition: Where the investigation concerns the Prime Minister, Union Minister or MP and discloses a Prevention of Corruption Act offence, section 24 permits Lokpal to file a case in the Special Court and requires the report/findings to be sent to the competent authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

"Sanction" is procedural authorisation to prosecute; it is not a merits verdict.

MUST-WRITE KEYWORDS

- Investigation
- Report
- Sanction
- Prosecution
- Prima facie routing

Claim -> named evidence -> analysis -> qualification

- **Claim:** Sanction and prosecution are gateways to trial, not findings of guilt.
- **Named evidence:** Sections 20(6)-(8), 23 and 24.
- **Analysis:** The investigation report reaches the jurisdictional court and Lokpal; a three-Member bench may authorise charge-sheet/prosecution, closure or departmental action.
- **Qualification:** Section 23(3) preserves constitutionally specified removal procedures, and section 24 separately governs findings concerning the Prime Minister, Union Ministers and MPs.

Evidence

[FACT] The investigating agency submits its statutory investigation report to the court having jurisdiction and forwards a copy to Lokpal.

[FACT] A bench of at least three Members considers the report and, after comments from the competent authority and public servant, may grant sanction to the Prosecution Wing or agency to file a charge-sheet, direct a closure report, or direct departmental/other action.

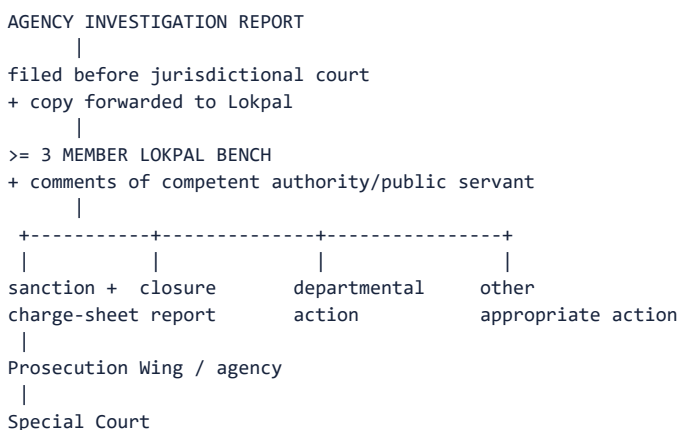
[FACT] Lokpal may then direct its Prosecution Wing or investigating agency to initiate prosecution in the Special Court.

[FACT] Section 23 gives Lokpal prosecution-sanction power for the section 20(7)(a) route, subject to the constitutional-office qualification in section 23(3).

[FACT] Where the investigation concerns the Prime Minister, Union Minister or MP and discloses a Prevention of Corruption Act offence, section 24 permits Lokpal to file a case in the Special Court and requires the report/findings to be sent to the competent authority.

[ANALYSIS] "Sanction" is procedural authorisation to prosecute; it is not a merits verdict. Likewise, a charge-sheet is an accusation supported by investigative material, not a conviction.

Visual 35 - Post-Investigation Decision Flow



Caption: The post-report stage combines criminal and departmental choices without treating either as established guilt.

Visual 36 - Special Court Role

Question	Lokpal	Special Court
Prima facie routing	Yes	No
Prosecution sanction under Act	Yes	No
Charge framed/trial conducted	No	Yes
Attachment confirmed	Applies/seeks	Decides
Conviction/acquittal	No	Yes
Loss assessment after conviction	No	Yes

Caption: Special Court control is a central due-process counterweight to Lokpal's process powers.

Prelims trap

Section 23(3) preserves constitutionally specified removal procedures, and section 24 separately governs findings concerning the Prime Minister, Union Ministers and MPs.

Mains use

Use **Sections 20(6)-(8), 23 and 24**. to prove the claim, then explain that the investigation report reaches the jurisdictional court and Lokpal; a three-Member bench may authorise charge-sheet/prosecution, closure or departmental action.

Closing recall flow - INVESTIGATION, REPORT, SANCTION AND PROSECUTION

INVESTIGATION, REPORT, SANCTION AND PROSECUTION

- > CLAIM: Sanction and prosecution are gateways to trial, not findings of guilt.
- > EVIDENCE: Sections 20(6)-(8), 23 and 24.
- > ANALYSIS: The investigation report reaches the jurisdictional court and Lokpal; a three-Member bench may authorise charge-sheet/prosecution, closure or departmental action.
- > LIMIT: Section 23(3) preserves constitutionally specified removal procedures, and section 24 separately governs findings concerning the Prime Minister, Union Ministers and MPs.

Recap: Sanction and prosecution are gateways to trial, not findings of guilt. Section 23(3) preserves constitutionally specified removal procedures, and section 24 separately governs findings concerning the Prime Minister, Union Ministers and MPs.

SESSION 18 - INQUIRY WING AND PROSECUTION WING: MANDATE AND VERIFIED STATUS

VISUAL FIRST

INQUIRY WING AND PROSECUTION WING: MANDATE AND VERIFIED STATUS

CORE: The Inquiry Wing and Prosecution Wing have distinct statutory mandates.

|
v

AUTHORITY: Sections 11 and 12; official constitution of the Inquiry Wing in 2024 and Prosecution Wing in 2025.

|
v

WHY IT MATTERS: A dedicated preliminary-inquiry structure and a prosecution arm can reduce role confusion and support continuity.

|
v

LIMIT: Formal constitution does not by itself prove complete staffing, operational independence or outcomes, and neither wing is a criminal court.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The two statutory wings perform different pre-trial functions.

Technical definition: The Inquiry Wing conducts preliminary inquiry and the Prosecution Wing files or conducts prosecution when directed; official constitution dates do not by themselves prove full staffing or output.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The two statutory wings perform different pre-trial functions.

MUST-WRITE KEYWORDS

- Inquiry Wing
- Prosecution Wing
- preliminary inquiry
- staffing

Claim -> named evidence -> analysis -> qualification

- **Claim:** The Inquiry Wing and Prosecution Wing have distinct statutory mandates.
- **Named evidence:** Sections 11 and 12; official constitution of the Inquiry Wing in 2024 and Prosecution Wing in 2025.
- **Analysis:** A dedicated preliminary-inquiry structure and a prosecution arm can reduce role confusion and support continuity.
- **Qualification:** Formal constitution does not by itself prove complete staffing, operational independence or outcomes, and neither wing is a criminal court.

Evidence

[FACT] Section 11 requires an Inquiry Wing headed by the Director of Inquiry to conduct preliminary inquiries into alleged Prevention of Corruption Act offences by public servants. Officers not below Under Secretary rank have specified civil-court powers for this purpose.

[FACT] Section 12 requires Lokpal, by notification, to constitute a Prosecution Wing headed by the Director of Prosecution. When directed, it files the case before the Special Court in accordance with the investigation report and takes necessary prosecution steps.

[CURRENT] The official Lokpal circulars/notifications register records "**Constitution of Inquiry Wing of Lokpal of India**" dated **5 September 2024**.

[CURRENT] The official revised organogram dated 13 September 2024 depicts a Director of Inquiry and an Inquiry structure within the Judicial Wing.

[CURRENT] The Chairperson formally constituted the Prosecution Wing by order dated **6 June 2025**. An official Gazette notification dated **13 June 2025** records that constitution under section 12.

[LIMIT] Formal constitution and a published organogram prove legal/organisational creation. They do not, by themselves, prove that every sanctioned post is filled, that the wings possess complete independent operational

capacity, or any particular level of case output.

Visual 37 - Wings: Law vs Current Implementation

Wing	Statutory mandate	Official implementation evidence	Controlled conclusion
Inquiry Wing	Preliminary inquiry, section 11	Constitution entry dated 5 Sep 2024; revised organogram dated 13 Sep 2024	Formally constituted and structurally depicted
Prosecution Wing	File/prosecute cases when directed, section 12	Formal order 6 Jun 2025; Gazette notification 13 Jun 2025	Formally constituted and notified
Investigation function	Criminal investigation	Assigned to CBI/DSPE or other agency under section 20	Wings do not create a general Lokpal police force

Caption: "Created in the Act", "formally constituted" and "fully staffed/effective" are three different propositions.

Visual 38 - Inquiry-Investigation-Prosecution Boundary

INQUIRY WING preliminary inquiry prima facie threshold section 11	INVESTIGATING AGENCY police/criminal investigation evidence + statutory report section 20	PROSECUTION WING files and conducts case before Special Court section 12
--	--	---

NO STAGE = FINAL GUILT

Caption: Institutional labels must follow the statutory function actually performed.

Prelims trap

Formal constitution does not by itself prove complete staffing, operational independence or outcomes, and neither wing is a criminal court.

Mains use

Use **Sections 11 and 12; official constitution of the Inquiry Wing in 2024 and Prosecution Wing in 2025.** to prove the claim, then explain that a dedicated preliminary-inquiry structure and a prosecution arm can reduce role confusion and support continuity.

Closing recall flow - INQUIRY WING AND PROSECUTION WING: MANDATE AND VERIFIED STATUS

- INQUIRY WING AND PROSECUTION WING: MANDATE AND VERIFIED STATUS
- > CLAIM: The Inquiry Wing and Prosecution Wing have distinct statutory mandates.
 - > EVIDENCE: Sections 11 and 12; official constitution of the Inquiry Wing in 2024 and Prosecution Wing in 2025.
 - > ANALYSIS: A dedicated preliminary-inquiry structure and a prosecution arm can reduce role confusion and support continuity.
 - > LIMIT: Formal constitution does not by itself prove complete staffing, operational independence or outcomes, and neither wing is a criminal court.

Recap: The Inquiry Wing and Prosecution Wing have distinct statutory mandates. Formal constitution does not by itself prove complete staffing, operational independence or outcomes, and neither wing is a criminal court.

SESSION 19 - SUPERVISORY AND INVESTIGATIVE-PROCESS POWERS

VISUAL FIRST

SUPERVISORY AND INVESTIGATIVE-PROCESS POWERS

CORE: Lokpal's control over CBI/DSPE is strong but case-bounded.

|
v

AUTHORITY: Section 25(1)-(5).

|
v

WHY IT MATTERS: Superintendence, directions, transfer approval, advocate-panel consent and dedicated funding safeguards protect Lokpal-referred matters from interference.

|
v

LIMIT: The anti-dictation proviso bars requiring an agency to investigate or dispose of a case in a particular manner; other CBI cases remain outside this power.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Lokpal cannot use that power to require an agency to investigate or dispose of a case in a particular manner.

Technical definition: Section 25 gives Lokpal superintendence and direction over DSPE in matters Lokpal refers for preliminary inquiry or investigation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Lokpal cannot use that power to require an agency to investigate or dispose of a case in a particular manner.

MUST-WRITE KEYWORDS

- Supervisory
- Investigative-Process Powers
- Direct DSPE in referred matter
- Cannot dictate particular investigation/disposal
- Transfer approval for referred-case investigator

Claim -> named evidence -> analysis -> qualification

- **Claim:** Lokpal's control over CBI/DSPE is strong but case-bounded.
- **Named evidence:** Section 25(1)-(5).
- **Analysis:** Superintendence, directions, transfer approval, advocate-panel consent and dedicated funding safeguards protect Lokpal-referred matters from interference.
- **Qualification:** The anti-dictation proviso bars requiring an agency to investigate or dispose of a case in a particular manner; other CBI cases remain outside this power.

Evidence

[FACT] Section 25 gives Lokpal superintendence and direction over DSPE in matters Lokpal refers for preliminary inquiry or investigation.

[FACT] Lokpal cannot use that power to require an agency to investigate or dispose of a case in a particular manner.

[FACT] A DSPE officer investigating a Lokpal-referred case cannot be transferred without Lokpal approval.

[FACT] DSPE may, with Lokpal's consent, appoint a panel of advocates other than government advocates for referred cases.

[ANALYSIS] This creates operational insulation for referred cases, not general command over every CBI investigation.

Visual 39 - CBI/DSPE Guardrails

LOKPAL-REFERRED MATTER
|
superintendence + lawful directions
|
NO DICTATION OF PARTICULAR MANNER OR DISPOSAL
|
investigating officer transfer requires Lokpal approval
|
advocate panel requires Lokpal consent

Caption: Superintendence is real but bounded by investigative independence and case-specific jurisdiction.

Visual 40 - Power Matrix

Power	Lokpal position	Key limit
Direct DSPE in referred matter	Yes	Cannot dictate particular investigation/disposal
Transfer approval for referred-case investigator	Yes	Only Lokpal-referred case
Conduct general police investigation	No	Agency function
Authorise search/seizure	Yes	Through agency entrusted with investigation
Require information/documents	Yes	For inquiry/investigation under Act
Recommend suspension/transfer	Yes	Government ordinarily accepts; may record administrative reasons
Convict or sentence	No	Court function

Caption: The most defensible answer names both the power and its statutory boundary.

Prelims trap

The anti-dictation proviso bars requiring an agency to investigate or dispose of a case in a particular manner; other CBI cases remain outside this power.

Mains use

Use **Section 25(1)-(5)**. to prove the claim, then explain that superintendence, directions, transfer approval, advocate-panel consent and dedicated funding safeguards protect Lokpal-referred matters from interference.

Closing recall flow - SUPERVISORY AND INVESTIGATIVE-PROCESS POWERS

SUPERVISORY AND INVESTIGATIVE-PROCESS POWERS

- > CLAIM: Lokpal's control over CBI/DSPE is strong but case-bounded.
- > EVIDENCE: Section 25(1)-(5).
- > ANALYSIS: Superintendence, directions, transfer approval, advocate-panel consent and dedicated funding safeguards protect Lokpal-referred matters from interference.
- > LIMIT: The anti-dictation proviso bars requiring an agency to investigate or dispose of a case in a particular manner; other CBI cases remain outside this power.

Recap: Lokpal's control over CBI/DSPE is strong but case-bounded. The anti-dictation proviso bars requiring an agency to investigate or dispose of a case in a particular manner; other CBI cases remain outside this power.

SESSION 20 - SEARCH, CIVIL-COURT POWERS, ATTACHMENT AND CONFISCATION

VISUAL FIRST

SEARCH, CIVIL-COURT POWERS, ATTACHMENT AND CONFISCATION

CORE: Coercive property powers remain reasoned, temporary and court-controlled.

|
v

AUTHORITY: Sections 26-31: search authorisation, civil-court powers, 90-day provisional attachment, 30-day confirmation application and Special Court orders.

|
v

WHY IT MATTERS: The sequence prevents dissipation of suspected proceeds while preserving sealed judicial review, restoration on acquittal and compensation where return is impossible.

|
v

LIMIT: Lokpal does not finally confiscate property by administrative fiat; the statutory Special Court controls confirmation and confiscation.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 31 separately permits Special Court confiscation in special circumstances on prima facie evidence until acquittal, with restoration/value plus statutory interest if the order is annulled or the public servant is acquitted.

Technical definition: Sections 26-31 combine evidence-gathering powers with provisional attachment and Special Court control over confirmation and confiscation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Section 31 separately permits Special Court confiscation in special circumstances on prima facie evidence until acquittal, with restoration/value plus statutory interest if the order is annulled or the public servant is acquitted.

MUST-WRITE KEYWORDS

- Civil-Court Powers
- Attachment
- Confiscation
- ninety days
- thirty days

Claim -> named evidence -> analysis -> qualification

- **Claim:** Coercive property powers remain reasoned, temporary and court-controlled.
- **Named evidence:** Sections 26-31: search authorisation, civil-court powers, 90-day provisional attachment, 30-day confirmation application and Special Court orders.
- **Analysis:** The sequence prevents dissipation of suspected proceeds while preserving sealed judicial review, restoration on acquittal and compensation where return is impossible.
- **Qualification:** Lokpal does not finally confiscate property by administrative fiat; the statutory Special Court controls confirmation and confiscation.

Evidence

[FACT] Section 26 allows Lokpal, where it has reason to believe relevant documents are secreted, to authorise the investigating agency to search for and seize them.

[FACT] Section 27 gives the Inquiry Wing civil-court powers during preliminary inquiry for summoning, attendance, examination on oath, document discovery/production, affidavit evidence, public-record requisition and commissions.

[FACT] Proceedings before Lokpal are deemed judicial proceedings for the false-evidence provision referenced by the Act. This does not transform Lokpal into a criminal court.

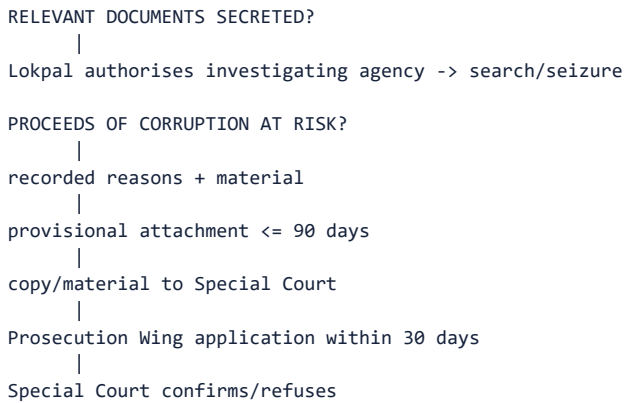
[FACT] Section 29 permits provisional attachment for up to **ninety days** where recorded reasons and material support belief about proceeds of corruption and risk of concealment/transfer. The order and material go to the Special Court.

[FACT] Under section 30, the Prosecution Wing must apply within **thirty days** for confirmation. Acquittal ordinarily leads to restoration; conviction permits confiscation of proceeds relatable to the offence.

[FACT] Section 31 separately permits Special Court confiscation in special circumstances on prima facie evidence until acquittal, with restoration/value plus statutory interest if the order is annulled or the public servant is acquitted.

[FACT] Section 32 permits Lokpal to recommend transfer or suspension where continuation threatens inquiry, evidence or witnesses. The Central Government ordinarily accepts, unless written administrative reasons make it infeasible.

Visual 41 - Search and Attachment Sequence



Caption: Search is agency-executed; attachment is court-controlled after the provisional stage.

Visual 42 - Civil Court, Criminal Court and Judicial Proceeding

Proposition	Correct?	Reason
Inquiry Wing has specified civil-court powers	Yes	Section 27
Lokpal proceedings are deemed judicial for false-evidence law	Yes	Section 27(2)
Lokpal is a civil court for all purposes	No	Powers are purpose-specific
Lokpal is a criminal court	No	Special Court adjudicates
Lokpal has a general contempt jurisdiction	No general power located in the Act	Do not infer from "judicial proceeding"

Caption: A deeming provision must not be expanded beyond its stated purpose.

Prelims trap

Lokpal does not finally confiscate property by administrative fiat; the statutory Special Court controls confirmation and confiscation.

Mains use

Use **Sections 26-31: search authorisation, civil-court powers, 90-day provisional attachment, 30-day confirmation application and Special Court orders**. to prove the claim, then explain that the sequence prevents dissipation of suspected proceeds while preserving sealed judicial review, restoration on acquittal and compensation where return is impossible.

Closing recall flow - SEARCH, CIVIL-COURT POWERS, ATTACHMENT AND CONFISCATION

SEARCH, CIVIL-COURT POWERS, ATTACHMENT AND CONFISCATION

- > CLAIM: Coercive property powers remain reasoned, temporary and court-controlled.
- > EVIDENCE: Sections 26-31: search authorisation, civil-court powers, 90-day provisional attachment, 30-day confirmation application and Special Court orders.
- > ANALYSIS: The sequence prevents dissipation of suspected proceeds while preserving sealed judicial review, restoration on acquittal and compensation where return is impossible.
- > LIMIT: Lokpal does not finally confiscate property by administrative fiat; the statutory Special Court controls confirmation and confiscation.

Recap: Coercive property powers remain reasoned, temporary and court-controlled. Lokpal does not finally confiscate property by administrative fiat; the statutory Special Court controls confirmation and confiscation.

SESSION 21 - ASSETS, SECTION 44 AMENDMENT AND SECTION 45 PRESUMPTION

VISUAL FIRST

ASSETS, SECTION 44 AMENDMENT AND SECTION 45 PRESUMPTION

CORE: The 2016 amendment retained an asset-declaration duty but removed the original self-executing detail.

|
v

AUTHORITY: Substituted section 44 and section 45.

|
v

WHY IT MATTERS: Form and manner now depend on prescription, while section 45's rebuttable presumption addresses wilful non-disclosure or misleading information under its conditions.

|
v

LIMIT: Do not reproduce the original 30/31 July/website-publication scheme as current section 44 law.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Asset declaration and evidentiary presumption are separate rules.

Technical definition: The 2016 substitution retained declaration in prescribed form and manner; section 45 creates a rebuttable presumption for intentional or unexplained non-declaration, not automatic guilt.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Asset declaration and evidentiary presumption are separate rules.

MUST-WRITE KEYWORDS

- **section 44**
- **section 45**
- **asset declaration**
- **rebuttable presumption**

Claim -> named evidence -> analysis -> qualification

- **Claim:** The 2016 amendment retained an asset-declaration duty but removed the original self-executing detail.
- **Named evidence:** Substituted section 44 and section 45.
- **Analysis:** Form and manner now depend on prescription, while section 45's rebuttable presumption addresses wilful non-disclosure or misleading information under its conditions.
- **Qualification:** Do not reproduce the original 30/31 July/website-publication scheme as current section 44 law.

Evidence

[FACT] The original section 44 contained a more detailed declaration structure. The **Lokpal and Lokayuktas (Amendment) Act, 2016** substituted it retrospectively from commencement.

[FACT] Current section 44 states that every public servant shall declare assets and liabilities **in such form and manner as may be prescribed**.

[FACT] Section 45 provides a rebuttable presumption where a public servant wilfully or without justifiable reason fails to declare assets, or supplies misleading information and is found possessing undisclosed/misdescribed assets.

[FACT] The 2016 amendment substituted section 44 and retained the declaration duty while leaving its form and manner to prescription.

[LIMIT] Do not use the original 2014 deadlines and public-website formula as though they remained the text of section 44 after substitution.

[LIMIT] **Lok Prahari v. Union of India (2018)** concerned election-candidate/legislator disclosure, sources of income, voter information and a permanent monitoring mechanism. It did not judicially restore the original section 44 format.

Visual 43 - Section 44 Before and After 2016

Dimension	Original framework	Current statutory framework
Detail in Act	Extensive declaration/publication architecture	General duty
Operative wording	Specified assets/liabilities and related disclosure design	Form and manner to be prescribed
Rules status	2014 rules existed	DoPT stated old rules redundant after amendment
Safe exam statement	Historical design	Current section 44 + rule-status qualification

Caption: The amendment preserved a declaration duty but changed how its operative detail is supplied.

Visual 44 - Section 45 Logic

WILFUL / UNJUSTIFIABLE FAILURE TO DECLARE
OR
MISLEADING INFORMATION + UNDISCLOSED ASSETS FOUND
|
REBUTTABLE PRESUMPTION
assets belong to public servant and were acquired by corrupt means
|
public servant may prove otherwise

Caption: Section 45 is a rebuttable evidentiary presumption, not automatic conviction.

Prelims trap

Do not reproduce the original 30/31 July/website-publication scheme as current section 44 law.

Mains use

Use **Substituted section 44 and section 45**. to prove the claim, then explain that form and manner now depend on prescription, while section 45's rebuttable presumption addresses wilful non-disclosure or misleading information under its conditions.

Closing recall flow - ASSETS, SECTION 44 AMENDMENT AND SECTION 45 PRESUMPTION

ASSETS, SECTION 44 AMENDMENT AND SECTION 45 PRESUMPTION
-> CLAIM: The 2016 amendment retained an asset-declaration duty but removed the original self-executing detail.
-> EVIDENCE: Substituted section 44 and section 45.
-> ANALYSIS: Form and manner now depend on prescription, while section 45's rebuttable presumption addresses wilful non-disclosure or misleading information under its conditions.
-> LIMIT: Do not reproduce the original 30/31 July/website-publication scheme as current section 44 law.

Recap: The 2016 amendment retained an asset-declaration duty but removed the original self-executing detail. Do not reproduce the original 30/31 July/website-publication scheme as current section 44 law.

SESSION 22 - SEVEN-YEAR LIMITATION AND FALSE-COMPLAINT SAFEGUARDS

VISUAL FIRST

SEVEN-YEAR LIMITATION AND FALSE-COMPLAINT SAFEGUARDS

CORE: The Act screens stale and malicious complaints without equating failure with falsity.

|
v

AUTHORITY: Sections 46 and 53.

|
v

WHY IT MATTERS: The seven-year bar limits old allegations; a false, frivolous or vexatious complaint requires Special Court conviction and may attract imprisonment, fine, compensation and costs.

|
v

LIMIT: Good-faith complaints are protected, and dismissal or lack of proof does not automatically establish the section 46 offence.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Act combines a seven-year complaint bar with safeguards against malicious complaints.

Technical definition: Section 53 counts seven years from the alleged offence; section 46 requires its statutory conditions and protects good-faith complaints, so dismissal alone does not establish falsity.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Act combines a seven-year complaint bar with safeguards against malicious complaints.

MUST-WRITE KEYWORDS

- **section 53**
- **seven years**
- **section 46**
- **good faith**

Claim -> named evidence -> analysis -> qualification

- **Claim:** The Act screens stale and malicious complaints without equating failure with falsity.
- **Named evidence:** Sections 46 and 53.
- **Analysis:** The seven-year bar limits old allegations; a false, frivolous or vexatious complaint requires Special Court conviction and may attract imprisonment, fine, compensation and costs.
- **Qualification:** Good-faith complaints are protected, and dismissal or lack of proof does not automatically establish the section 46 offence.

Evidence

[FACT] Section 53 bars Lokpal inquiry or investigation where the complaint is made after **seven years from the date of the alleged offence**.

[FACT] Section 46 punishes, on conviction, a false and frivolous or vexatious complaint with imprisonment up to one year and fine up to one lakh rupees. Cognizance and prosecution follow the section's special conditions.

[FACT] A convicted complainant may also be ordered to pay compensation and legal expenses.

[FACT] Section 46 does not apply to complaints made in good faith; the Act defines good faith through due care, caution and responsibility or mistake of fact under the stated criminal-law provision.

[ANALYSIS] The false-complaint provision protects public servants against abuse, but can chill legitimate complainants if failure of proof is wrongly equated with bad faith.

[LIMIT] Closure, acquittal or an unproved allegation does not automatically establish a false, frivolous or vexatious complaint.

Visual 45 - Limitation Clock

DATE OF ALLEGED OFFENCE

|

7 YEARS

|

complaint after expiry -> Lokpal cannot inquire/investigate

NOT THE SAME AS:

date of discovery | retirement date | date complaint is publicised

Caption: Section 53 uses the alleged-offence date.

Visual 46 - False Complaint Test

Situation	Section 46 automatically applies?
Complaint dismissed for lack of evidence	No
Public servant acquitted	No
Filing defect	No
Complaint judicially found false and frivolous/vexatious through statutory process	Potentially
Good-faith complaint	Expressly protected

Caption: Anti-abuse law must not be converted into strict liability for an unsuccessful complainant.

Prelims trap

Good-faith complaints are protected, and dismissal or lack of proof does not automatically establish the section 46 offence.

Mains use

Use **Sections 46 and 53**. to prove the claim, then explain that the seven-year bar limits old allegations; a false, frivolous or vexatious complaint requires Special Court conviction and may attract imprisonment, fine, compensation and costs.

Closing recall flow - SEVEN-YEAR LIMITATION AND FALSE-COMPLAINT SAFEGUARDS

SEVEN-YEAR LIMITATION AND FALSE-COMPLAINT SAFEGUARDS

- > CLAIM: The Act screens stale and malicious complaints without equating failure with falsity.
- > EVIDENCE: Sections 46 and 53.
- > ANALYSIS: The seven-year bar limits old allegations; a false, frivolous or vexatious complaint requires Special Court conviction and may attract imprisonment, fine, compensation and costs.
- > LIMIT: Good-faith complaints are protected, and dismissal or lack of proof does not automatically establish the section 46 offence.

Recap: The Act screens stale and malicious complaints without equating failure with falsity. Good-faith complaints are protected, and dismissal or lack of proof does not automatically establish the section 46 offence.

SESSION 23 - LOKPAL-CVC-CBI RELATIONSHIP

VISUAL FIRST

LOKPAL-CVC-CBI RELATIONSHIP

CORE: India's integrity system is a network of legally distinct institutions rather than a single anti-corruption super-agency.

|
v

AUTHORITY: Lokpal Act sections 20, 23, 25 and 35; CVC Act, DSPE Act, CAG and RTI frameworks.

|
v

WHY IT MATTERS: Lokpal routes and supervises referred matters, CVC handles vigilance and specified inquiries, CVOs operate departmentally, CBI/DSPE investigates, prosecutors present cases, Special Courts adjudicate, CAG audits public finance and CIC enforces information access.

|
v

LIMIT: Shared accountability goals do not permit one body to assume another's statutory, audit, disclosure or judicial function.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Lokpal, CVC and CBI have distinct roles in one accountability process.

Technical definition: Lokpal routes and decides; CVC conducts specified preliminary inquiries; CBI investigates through DSPE powers; Lokpal superintendence is confined to referred matters and courts decide guilt.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Lokpal, CVC and CBI have distinct roles in one accountability process.

MUST-WRITE KEYWORDS

- Lokpal
- CVC
- CBI
- DSPE
- superintendence

Claim -> named evidence -> analysis -> qualification

- **Claim:** India's integrity system is a network of legally distinct institutions rather than a single anti-corruption super-agency.
- **Named evidence:** Lokpal Act sections 20, 23, 25 and 35; CVC Act, DSPE Act, CAG and RTI frameworks.
- **Analysis:** Lokpal routes and supervises referred matters, CVC handles vigilance and specified inquiries, CVOs operate departmentally, CBI/DSPE investigates, prosecutors present cases, Special Courts adjudicate, CAG audits public finance and CIC enforces information access.
- **Qualification:** Shared accountability goals do not permit one body to assume another's statutory, audit, disclosure or judicial function.

Evidence

[FACT] Lokpal is the complaint-routing and decision institution under its Act.

[FACT] CVC conducts or processes preliminary inquiries for referred Union official categories and reports/statements as the statutes require.

[FACT] CBI, through DSPE powers, may conduct preliminary inquiry or investigation when referred and submits the legal investigation report.

[FACT] Lokpal exercises referred-matter superintendence, controls transfer of the investigating officer in such cases and may grant prosecution sanction/direction.

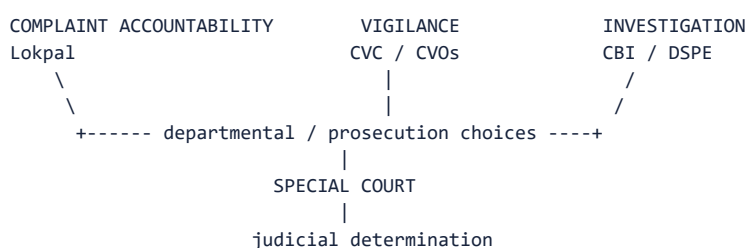
[ANALYSIS] The relationship is functional, not a single command pyramid. Each institution retains a different legal source, domain and output.

Visual 47 - Role Matrix

Function	Lokpal	CVC	CBI/DSPE	Special Court
Receive prescribed Lokpal complaint	Yes	Referred route	No primary Lokpal intake	No
Preliminary inquiry	Inquiry Wing/agency	Yes for referred categories	May be assigned	No
Criminal investigation	Directs agency	No general police role	Yes	No
Referred-case superintendence	Yes	Statutory role in own field	Subject to lawful oversight	Judicial review/trial
Prosecution sanction under Lokpal route	Yes	No	Uses sanction/process	No
Trial and guilt	No	No	No	Yes

Caption: Overlap in anti-corruption purpose does not erase institutional specialisation.

Visual 48 - Anti-Corruption Ecosystem



Caption: Coordination is necessary because no single body lawfully performs every function.

Visual - Institutional boundary map

Institution	Primary role	Boundary
Lokpal	Receives prescribed corruption complaints; routes inquiry/investigation; decides statutory follow-up	Does not convict, sentence or control every CBI case
CVC	Vigilance supervision/advice and section 20 preliminary-inquiry route for specified Union officials	Not a police force or criminal court
CBI/DSPE	Criminal investigation under DSPE and criminal-procedure authority	Does not decide guilt
CVO	Department-level vigilance, prevention and disciplinary coordination	Not an independent court or substitute for CBI
Prosecution Wing/prosecutor	Files and conducts prosecution when lawfully directed	Does not determine guilt
Special Court	Cognizance, trial, attachment/confiscation control and criminal judgment	Does not run vigilance administration
CAG	Audits public accounts and reports under its constitutional/statutory mandate	Does not investigate every corruption complaint
CIC	Enforces the RTI disclosure/appeal regime	Does not prosecute corruption
Constitutional courts	Judicial review and exceptional constitutional remedies	Do not become routine investigative agencies

Caption: Use legal function, not the broad word "accountability", to distinguish institutions.

Prelims trap

Shared accountability goals do not permit one body to assume another's statutory, audit, disclosure or judicial function.

Mains use

Use **Lokpal Act sections 20, 23, 25 and 35; CVC Act, DSPE Act, CAG and RTI frameworks**. to prove the claim, then explain that lokpal routes and supervises referred matters, CVC handles vigilance and specified inquiries, CVOs operate departmentally, CBI/DSPE investigates, prosecutors present cases, Special Courts adjudicate, CAG audits public finance and CIC enforces information access.

Closing recall flow - LOKPAL-CVC-CBI RELATIONSHIP

LOKPAL-CVC-CBI RELATIONSHIP

- > CLAIM: India's integrity system is a network of legally distinct institutions rather than a single anti-corruption super-agency.
- > EVIDENCE: Lokpal Act sections 20, 23, 25 and 35; CVC Act, DSPE Act, CAG and RTI frameworks.
- > ANALYSIS: Lokpal routes and supervises referred matters, CVC handles vigilance and specified inquiries, CVOs operate departmentally, CBI/DSPE investigates, prosecutors present cases, Special Courts adjudicate, CAG audits public finance and CIC enforces information access.
- > LIMIT: Shared accountability goals do not permit one body to assume another's statutory, audit, disclosure or judicial function.

Recap: India's integrity system is a network of legally distinct institutions rather than a single anti-corruption super-agency. Shared accountability goals do not permit one body to assume another's statutory, audit, disclosure or judicial function.

SESSION 24 - LOKAYUKTAS AND FEDERAL DIVERSITY

VISUAL FIRST

LOKAYUKTAS AND FEDERAL DIVERSITY

CORE: Section 63 imposes a State obligation but leaves Lokayukta design to State legislation.

|
v

AUTHORITY: Section 63; Maharashtra Lokayukta and Upa-Lokayuktas Act, 1971; Karnataka Lokayukta Act, 1984.

|
v

WHY IT MATTERS: State variation can enable experimentation: Maharashtra's 1971 enactment is a historical early model, while Karnataka's 1984 Act supplies a distinct Lokayukta/Upalokayukta and investigation framework.

|
v

LIMIT: These dated statutory examples prove variation; they do not establish current performance or one national composition and power.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 63 requires every State, if it had not already done so, to establish a Lokayukta by a law of the State Legislature within one year from commencement of the Union Act.

Technical definition: Federal flexibility permits adaptation and also produces uneven accountability capacity.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Section 63 requires every State, if it had not already done so, to establish a Lokayukta by a law of the State Legislature within one year from commencement of the Union Act.

MUST-WRITE KEYWORDS

- Lokayuktas
- Federal Diversity
- Jurisdiction
- Broad high-office and official coverage with narrow exclusions

- **Wide exclusions**
- **Appointment**

Claim -> named evidence -> analysis -> qualification

- **Claim:** Section 63 imposes a State obligation but leaves Lokayukta design to State legislation.
- **Named evidence:** Section 63; Maharashtra Lokayukta and Upa-Lokayuktas Act, 1971; Karnataka Lokayukta Act, 1984.
- **Analysis:** State variation can enable experimentation: Maharashtra's 1971 enactment is a historical early model, while Karnataka's 1984 Act supplies a distinct Lokayukta/Upalokayukta and investigation framework.
- **Qualification:** These dated statutory examples prove variation; they do not establish current performance or one national composition and power.

Evidence

[FACT] Section 63 requires every State, if it had not already done so, to establish a Lokayukta by a law of the State Legislature within one year from commencement of the Union Act.

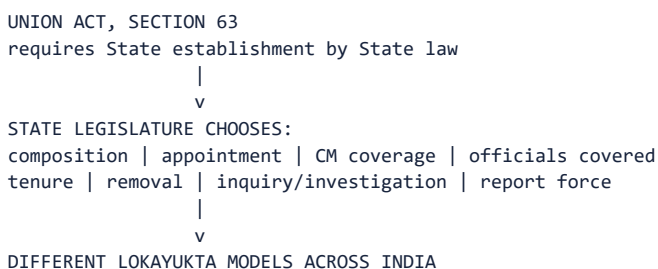
[FACT] Section 63 does not prescribe a uniform national composition, selection panel, jurisdiction, tenure, removal process, investigation wing, binding force or Upalokayukta model.

[FACT] Local Polity sources record Maharashtra as the first State to establish a Lokayukta in 1971, while noting earlier Odisha legislation with later enforcement.

[ANALYSIS] The Union Act creates a minimum institutional obligation, but State legislation determines design quality. Federal flexibility permits adaptation and also produces uneven accountability capacity.

[LIMIT] This package does not freeze a current State count or classify named States by today's vacancies/performance. "Strong" and "weak" below describe legal design features, not a permanent ranking.

Visual 49 - Section 63 Federal Model



Caption: The national law mandates establishment, not uniform institutional design.

Visual 50 - Strong vs Weak Design Archetypes

Design axis	Stronger statutory design	Weaker statutory design
Jurisdiction	Broad high-office and official coverage with narrow exclusions	Wide exclusions
Appointment	Multi-institutional, transparent panel	Executive-dominant process
Investigation	Dedicated/insulated capacity	Dependence without safeguards
Recommendations	Reasoned response and follow-up duties	Easily ignored advice
Tenure/removal	Fixed tenure and protected removal	Easy executive displacement
Reporting	Timely legislative/public reporting	Opaque disposal
Resources	Charged/protected or rule-based capacity	Ad hoc staffing

Caption: Federal comparison should evaluate statutory features, not rely on a changing vacancy list.

Visual 51 - Lokpal vs Lokayukta

Head	Lokpal	Lokayukta
Level	Union	State
Governing law	2013 parliamentary Act	Relevant State Act
Uniform composition	Yes under section 3	No national uniformity
PM/Union officials	Lokpal jurisdiction	Not State Lokayukta core
CM/State officials	Not automatically Lokpal's domain	Depends on State law
CVC/CBI routing	Express Union statutory links	State-specific machinery

Caption: Never transplant Lokpal's composition or five-member Selection Committee into every State statute.

Verified State-design contrast

State example	Verified statutory feature	Safe inference
Maharashtra, 1971 enactment	Historical early State model with Lokayukta/Upa-Lokayukta inquiry and reporting provisions.	Establishes chronology and variation only; no current officeholder or performance claim is made.
Karnataka, 1984 Act	Distinct Lokayukta/Upalokayukta structure with investigation and prosecution provisions.	Demonstrates that State powers may differ substantially; it is not the national template.

Caption: The contrast proves section 63 variation; it does not rank current officeholders or performance.

SUPREME COURT AND CURRENT-LAW CONTROLS

25.1 Common Cause v. Union of India (2017)

[FACT] The Supreme Court held the Act "eminently workable" and rejected the claim that its enforcement had to await proposed amendments.

[FACT] It read section 4(2) to permit a truncated Selection Committee, in the absence of a recognised LoP, to appoint the eminent jurist, constitute a Search Committee and recommend appointments.

[ANALYSIS] The case protects statutory implementation against political or institutional vacancy.

[LIMIT] It did not amend section 4 to create a largest-opposition-party substitute.

25.2 Lok Prahari v. Union of India (2018)

[FACT] The Court directed amendment of election Form 26/rules to require candidates and associates to declare sources of income, and required a permanent mechanism to monitor disproportionate asset growth of legislators and associates.

[FACT] It treated non-disclosure of assets and sources of income as undue influence/corrupt practice in the election-law context.

[LIMIT] The holding is about electoral disclosure and democratic information. It must not be cited as if the Court restored the pre-2016 section 44 Lokpal return format.

25.3 Sita Soren v. Union of India (2024)

[FACT] The seven-judge bench held that legislative privilege does not immunise bribery connected with a speech or vote.

[ANALYSIS] This narrows the practical space of the section 14(2) exclusion without erasing protected legislative speech and vote.

25.4 High Court Judge Jurisdiction Order (2025)

[CURRENT] On 20 February 2025, the Supreme Court stayed the Lokpal order dated 27 January 2025 in Complaint No. 05/2025 concerning asserted jurisdiction over a High Court judge, issued notice and imposed confidentiality directions.

[LIMIT] A stay is not a final holding on jurisdiction. The Lokpal order cannot be presented as settled expansion of jurisdiction, and the Supreme Court's interim order cannot be presented as a final exclusion ruling.

Visual 52 - Case-Control Timeline

Year	Case/order	Exact use
2017	<i>Common Cause v. Union of India (2017)</i>	Act workable; LoP vacancy not a legal blockade
2018	<i>Lok Prahari v. Union of India (2018)</i>	Electoral asset/source disclosure and monitoring
2024	<i>Sita Soren (2024)</i>	No legislative-privilege immunity for bribery
2025	SC stay of Lokpal HC-judge order	Jurisdiction issue remains unresolved

Caption: Each authority has a different holding; none is a generic "Lokpal powers" precedent.

Visual 53 - Judiciary Status Control

HIGH COURT JUDGE ISSUE
Lokpal asserted jurisdiction in Jan 2025
|
Supreme Court stayed order in Feb 2025
|
FINAL JURISDICTION QUESTION NOT SETTLED BY THAT INTERIM ORDER

Caption: A stayed institutional order and a final judicial holding must not be conflated.

Prelims trap

These dated statutory examples prove variation; they do not establish current performance or one national composition and power.

Mains use

Use **Section 63; Maharashtra Lokayukta and Upa-Lokayuktas Act, 1971; Karnataka Lokayukta Act, 1984.** to prove the claim, then explain that state variation can enable experimentation: Maharashtra's 1971 enactment is a historical early model, while Karnataka's 1984 Act supplies a distinct Lokayukta/Upalokayukta and investigation framework.

Closing recall flow - LOKAYUKTAS AND FEDERAL DIVERSITY

LOKAYUKTAS AND FEDERAL DIVERSITY

- > CLAIM: Section 63 imposes a State obligation but leaves Lokayukta design to State legislation.
- > EVIDENCE: Section 63; Maharashtra Lokayukta and Upa-Lokayuktas Act, 1971; Karnataka Lokayukta Act, 1984.
- > ANALYSIS: State variation can enable experimentation: Maharashtra's 1971 enactment is a historical early model, while Karnataka's 1984 Act supplies a distinct Lokayukta/Upalokayukta and investigation framework.
- > LIMIT: These dated statutory examples prove variation; they do not establish current performance or one national composition and power.

Recap: Section 63 imposes a State obligation but leaves Lokayukta design to State legislation. These dated statutory examples prove variation; they do not establish current performance or one national composition and power.

SESSION 25 - INDEPENDENCE AND ACCOUNTABILITY ASSESSMENT

VISUAL FIRST

INDEPENDENCE AND ACCOUNTABILITY ASSESSMENT

CORE: Institutional independence is meaningful only when appointment, tenure, finance, procedure and external review operate together.

|
v

AUTHORITY: Sections 4, 6, 13, 20, 37, 42 and 48.

|
v

WHY IT MATTERS: Plural selection, protected tenure, charged expenditure, reasoned procedure, CAG audit and parliamentary reporting create complementary safeguards.

|
v

LIMIT: Vacancies, staff dependence and opaque delay can weaken practical autonomy despite formal statutory protection.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Independence must coexist with reasons, reporting and judicial control.

Technical definition: Plural selection, fixed tenure, protected removal, charged expenditure and referred-case safeguards support autonomy, while vacancies, agency reliance and opaque disposal create accountability risks.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Independence must coexist with reasons, reporting and judicial control.

MUST-WRITE KEYWORDS

- independence
- accountability
- assessment
- selection
- tenure
- judicial review

Claim -> named evidence -> analysis -> qualification

- **Claim:** Institutional independence is meaningful only when appointment, tenure, finance, procedure and external review operate together.
- **Named evidence:** Sections 4, 6, 13, 20, 37, 42 and 48.
- **Analysis:** Plural selection, protected tenure, charged expenditure, reasoned procedure, CAG audit and parliamentary reporting create complementary safeguards.
- **Qualification:** Vacancies, staff dependence and opaque delay can weaken practical autonomy despite formal statutory protection.

Evidence

[FACT] Independence-supporting features include multi-institutional selection, fixed tenure, protected removal, post-tenure restrictions, expenditure charged on the Consolidated Fund of India, diverse membership, own statutory wings and referred-case control over DSPE transfers.

[ANALYSIS] Constraints include an executive-heavy Selection Committee, no general suo motu complaint power, prescribed-form barriers, reliance on external investigation, coordination delays, confidentiality tensions, the seven-year bar, uncertain asset-rule implementation and uneven State models.

[ANALYSIS] Transparency is also dual-edged. Public status information and annual reports support accountability, while complainant/public-servant confidentiality and PM in-camera rules protect fairness. Over-secrecy can weaken legitimacy; over-disclosure can prejudice inquiry.

[LIMIT] Structural vulnerability does not prove partisan misuse in a named case. Critique design with evidence, not insinuation.

Visual 54 - Independence Scorecard

Dimension	Safeguard	Residual risk
Appointment	Multiple constitutional/institutional actors	PM-led committee; vacancy politics
Tenure	Five years/70; protected removal	Delayed vacancies can reduce capacity
Finance	Charged on Consolidated Fund	Staffing/administrative dependence may remain
Inquiry	Own Inquiry Wing	Preliminary inquiry is not full police investigation
Investigation	DSPE transfer approval; superintendence	External-agency dependence
Prosecution	Own Prosecution Wing	Formal constitution does not prove full staffing
Transparency	Website status/annual reporting	Confidentiality and delayed reporting tensions
Federal reach	State duty to create Lokayukta	Non-uniform State design

Caption: Institutional independence is a bundle of safeguards, not a binary label.

Visual 55 - Accountability Without Merger

INDEPENDENCE FROM IMPROPER EXECUTIVE PRESSURE
 +
 ANSWERABILITY THROUGH REASONS, REPORTS AND COURTS
 +
 DUE PROCESS FOR PUBLIC SERVANT AND COMPLAINANT
 +
 FEDERAL RESPECT
 =
 CREDIBLE ANTI-CORRUPTION OMBUDSMAN

Caption: Independence without accountability risks arbitrariness; accountability without independence risks capture.

Prelims trap

Vacancies, staff dependence and opaque delay can weaken practical autonomy despite formal statutory protection.

Mains use

Use **Sections 4, 6, 13, 20, 37, 42 and 48.** to prove the claim, then explain that plural selection, protected tenure, charged expenditure, reasoned procedure, CAG audit and parliamentary reporting create complementary safeguards.

Closing recall flow - INDEPENDENCE AND ACCOUNTABILITY ASSESSMENT

INDEPENDENCE AND ACCOUNTABILITY ASSESSMENT
 -> CLAIM: Institutional independence is meaningful only when appointment, tenure, finance, procedure and external review operate together.
 -> EVIDENCE: Sections 4, 6, 13, 20, 37, 42 and 48.
 -> ANALYSIS: Plural selection, protected tenure, charged expenditure, reasoned procedure, CAG audit and parliamentary reporting create complementary safeguards.
 -> LIMIT: Vacancies, staff dependence and opaque delay can weaken practical autonomy despite formal statutory protection.

Recap: Institutional independence is meaningful only when appointment, tenure, finance, procedure and external review operate together. Vacancies, staff dependence and opaque delay can weaken practical autonomy despite formal statutory protection.

SESSION 26 - CRITIQUES, REPLIES AND REFORM PROPOSALS

VISUAL FIRST

CRITIQUES, REPLIES AND REFORM PROPOSALS

CORE: Reform should strengthen capacity and transparency without collapsing due process or federal diversity.

|

v

AUTHORITY: Sections 20, 25, 42, 48 and 63; experience of delayed constitution and State-law variation.

|

v

WHY IT MATTERS: Time-bound appointments, stable multidisciplinary staff, interoperable case tracking, anonymised stage-wise reporting and model minimum State standards target identified bottlenecks.

|

v

LIMIT: Suo-motu or stronger investigative proposals require legislative authority, recorded reasons, recusal, hearing and judicial review safeguards.

Caption: Read the legal rule, its institutional consequence and its limiting condition together.

Claim -> named evidence -> analysis -> qualification

- **Claim:** Reform should strengthen capacity and transparency without collapsing due process or federal diversity.
- **Named evidence:** Sections 20, 25, 42, 48 and 63; experience of delayed constitution and State-law variation.
- **Analysis:** Time-bound appointments, stable multidisciplinary staff, interoperable case tracking, anonymised stage-wise reporting and model minimum State standards target identified bottlenecks.
- **Qualification:** Suo-motu or stronger investigative proposals require legislative authority, recorded reasons, recusal, hearing and judicial review safeguards.

Evidence

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Reform should strengthen capacity without merging legal functions.

Technical definition: Timely appointments, staffed wings, interoperable case tracking, reasoned aggregate reporting and model State standards address delay and opacity while preserving due process and federal choice.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Reform should strengthen capacity without merging legal functions.

MUST-WRITE KEYWORDS

- critiques
- replies
- reform proposals
- appointments
- capacity
- federalism

27.1 Critique-Reply Matrix

Critique	Evidence	Reply	Qualification
"No teeth"	No general suo motu complaint route; agency dependence	Sanction, supervision, attachment and prosecution powers are real	Effectiveness depends on capacity and lawful use
"Executive capture"	PM chairs Selection Committee	Speaker, LoP, CJI/nominee and jurist diversify it	Executive remains institutionally influential
"Too secret"	PM inquiry in camera; identity protection	Confidentiality protects fairness and security	Reasoned aggregate reporting still needed
"Duplicative"	Lokpal, CVC and CBI overlap	Functions differ by stage	Poor coordination can create delay
"Uniform national system"	Section 63 duty	State law permits federal tailoring	Baseline quality varies
"False-complaint chilling"	Section 46 penalties	Good-faith protection exists	Failure of proof must not be treated as bad faith

Visual 56 - Reform Map

PROBLEM	PROPOSAL
form barriers	-> assisted multilingual filing and cure process
agency dependence	-> stable multidisciplinary staffing + time audits
appointment delay	-> public calendar and reasoned vacancy management
opacity	-> anonymised stage-wise reasons and annual reporting
State variation	-> model minimum standards, preserving State law
asset-rule uncertainty	-> notify clear current section 44 rules
false-complaint chilling	-> strict good-faith screen before prosecution
overlap	-> written Lokpal-CVC-CBI routing protocol

Caption: These are reform proposals, not existing legal powers.

[ANALYSIS] A model State Lokayukta law could propose minimum jurisdiction, appointment diversity, tenure protection, investigation safeguards, response deadlines and reporting standards while leaving States room to legislate.

[ANALYSIS] Any proposal for suo motu power should include a recorded-reasons threshold, conflict/recusal rules, natural justice and judicial review. More power without procedure can politicise the institution it seeks to strengthen.

[ANALYSIS] Publishing anonymised reasons for closure and aggregate stage-wise data could improve legitimacy without freezing live complaint counts or compromising protected identities.

Prelims trap

Suo-motu or stronger investigative proposals require legislative authority, recorded reasons, recusal, hearing and judicial review safeguards.

Mains use

Use **Sections 20, 25, 42, 48 and 63; experience of delayed constitution and State-law variation**. to prove the claim, then explain that time-bound appointments, stable multidisciplinary staff, interoperable case tracking, anonymised stage-wise reporting and model minimum State standards target identified bottlenecks.

Closing recall flow - CRITIQUES, REPLIES AND REFORM PROPOSALS

CRITIQUES, REPLIES AND REFORM PROPOSALS

-> CLAIM: Reform should strengthen capacity and transparency without collapsing due process or federal diversity.

-> EVIDENCE: Sections 20, 25, 42, 48 and 63; experience of delayed constitution and State-law variation.

-> ANALYSIS: Time-bound appointments, stable multidisciplinary staff, interoperable case tracking, anonymised stage-wise reporting and model minimum State standards target identified bottlenecks.

-> LIMIT: Suo-motu or stronger investigative proposals require legislative authority, recorded reasons, recusal, hearing and judicial review safeguards.

Recap: Reform should strengthen capacity and transparency without collapsing due process or federal diversity. Suo-motu or stronger investigative proposals require legislative authority, recorded reasons, recusal, hearing and judicial review safeguards.

SESSION 27 - FINANCE, AUDIT, ANNUAL REPORTS AND ACCOUNTABILITY

VISUAL FIRST

SECTION 13: specified administrative expenses charged on CFI
|
SECTION 40: Lokpal prepares budget -> Central Government informed
|
SECTION 41: parliamentary appropriation -> Central grants
|
SECTION 42: accounts -> CAG audit -> Parliament
|
SECTION 48: annual work report -> President
|
memorandum on unaccepted advice -> both Houses

Caption: Financial insulation is paired with audit, executive information duties and parliamentary reporting.

Definition

Financial and reporting accountability is the statutory chain through which Lokpal's expenditure, accounts, work and unaccepted advice are exposed to constitutional audit and Parliament.

Answer-grabbing line

Lokpal's independence is not fiscal isolation: charged expenditure is balanced by budget procedure, CAG audit and annual reporting to Parliament.

Must-write keywords

section 13; Consolidated Fund of India; sections 40-43; CAG audit; section 48; President; Parliament; reasons for non-acceptance

Claim -> named evidence -> analysis -> qualification

- **Claim:** Fiscal protection and public accountability are designed as complementary safeguards.
- **Named evidence:** Sections 13, 40, 41, 42, 43 and 48 of the 2013 Act.
- **Analysis:** Charged administrative expenses reduce ordinary vote-based pressure, while accounts, CAG access, audit reports and annual work reports create an external accountability trail.
- **Qualification:** The Central Government still receives budgets, makes appropriated grants and may require returns; formal reporting cannot substitute for timely, intelligible disclosure.

Evidence and explanation

- [FACT] Section 13 charges specified administrative expenses on the Consolidated Fund of India.
- [FACT] Sections 40-41 require a budget and grants after parliamentary appropriation.
- [FACT] Section 42 requires proper accounts, CAG audit and laying of certified accounts and audit report before both Houses.
- [FACT] Section 43 permits the Central Government to require returns, statements and particulars within Lokpal jurisdiction.
- [FACT] Section 48 requires an annual work report to the President; Parliament also receives a memorandum explaining cases in which Lokpal advice was not accepted.

Prelims trap

Charged expenditure does not exempt Lokpal from CAG audit or parliamentary accountability.

Mains use

Use this architecture to balance autonomy arguments with audit, reporting and reason-giving duties.

Closing recall flow - Finance, audit, annual reports and accountability

charged expenditure -> budget/appropriation -> CAG audit -> Parliament
-> annual work report -> reasons where advice was not accepted

Recap: Institutional independence requires protected functioning plus an auditable and reasoned public-accountability chain.

UPSC ANSWER ARCHITECTURE

Visual 57 - 10/15/20-Mark Spine

Marks	Structure	Evidence load
10	Definition/status -> 2-3 design features -> one limitation -> verdict	Act + 2 sections/case points
15	Evolution -> design -> jurisdiction/process -> critique/reply -> reforms	4-6 named legal anchors
20	Thesis -> full architecture -> PM/privilege/federalism -> institutions -> cases -> balanced reform	6-8 anchors + diagram

Caption: Marks should scale dimensions and evidence, not merely paragraph length.

Visual 58 - Directive Decoder

Directive	What examiner expects	Lokpal example
Explain	Mechanism and reasons	How complaint becomes prosecution
Examine	Test proposition using evidence	Whether Lokpal is independent
Analyse	Break into causal/institutional parts	Lokpal-CVC-CBI relationship
Critically examine	Strengths, weaknesses and reasoned verdict	"Ombudsman without teeth"
Discuss	Multi-dimensional balanced treatment	Uniform Lokayukta model

Caption: A critique without statutory mechanism becomes opinion; a description without evaluation misses "critically".

Visual 59 - Prelims Close-Option Traps

Trap	Correct control
Constitutional body	Statutory body
Chair must only be CJI	CJI/SC Judge/eminent qualified person
50% of total institution judicial	50% of Members judicial
Exactly eight Members	Not exceeding eight
PM fully immune	Included with exclusions and full-bench supermajority
MPs wholly immune	Protected speech/vote; bribery not immunised after <i>Sita Soren (2024)</i>
Lokpal directly investigates all cases	Investigation by assigned agency
CVC is subordinate office of Lokpal	Statutory functional referral relationship
Every State has same Lokayukta	State statutes vary
Failed complaint means false complaint	Section 46 threshold + good-faith shield

Caption: Most objective errors arise from replacing a qualified rule with an absolute proposition.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

[1/12] IDENTITY AND EVOLUTION

1809 Sweden: ombudsman idea

- > 1966 First ARC: Lokpal at Union + Lokayuktas in States
- > repeated parliamentary Bills from 1968
- > 2011 public anti-corruption movement adds political pressure
- > Lokpal and Lokayuktas Act, 2013
- > assent 1 Jan 2014; commencement 16 Jan 2014

LEGAL IDENTITY: statutory, corruption-specific, not constitutional

ANSWER LINE: Lokpal is a process authority, not police, prosecutor and judge combined.

[2/12] COMPOSITION, ELIGIBILITY AND REPRESENTATION

LOKPAL = Chairperson + not more than 8 Members

Members: 50% Judicial Members

Members: not less than 50% from SC/ST/OBC/minorities/women

Chair: CJI/former CJI, SC judge/former SC judge, or qualified eminent person

Judicial Member: SC judge/former SC judge or HC Chief Justice/former HC CJ

Other Member: impeccable integrity + outstanding ability + >=25 years listed expertise

Minimum age: 45

TRAP: both percentage rules use Members, not Chairperson-plus-Members.

[3/12] SELECTION, APPOINTMENT, TERM AND REMOVAL

Selection Committee:

PM (chair) | Lok Sabha Speaker | Lok Sabha LoP | CJI/nominee | eminent jurist

Search Committee: >=7 experts; diversity floor; panel is not exclusive

President appoints by warrant

Term: 5 years or age 70, whichever earlier; no ordinary reappointment

Member -> Chair allowed only within aggregate 5 years

Removal for misbehaviour: 100 MPs petition -> President reference -> SC inquiry

Direct grounds: insolvency | paid outside work | qualifying infirmity

COMMON CAUSE (2017): vacancy did not make the Act unworkable; no invented substitute seat.

[4/12] PERSONS AND ENTITIES WITHIN SECTION 14

PM/former PM -> special filters

Union Ministers/former Ministers -> covered

MPs/former MPs -> covered, subject to Article 105(2)

Groups A, B, C and D Union officials -> covered; section 20 routing differs

Former functionaries -> only conduct during covered capacity

Parliament-created / Central-controlled / Central-financed bodies -> conditional coverage

Other societies/associations/trusts:

clause (g): government finance + notified annual-income threshold

clause (h): foreign-source donation > Rs 10 lakh/year or higher notified amount

Section 14(3): connected abettor/bribe-giver/bribe-taker/conspirator may be reached

TRAP: this is not jurisdiction over every private person.

[5/12] PRIME MINISTER AND PARLIAMENTARY PRIVILEGE

PM INCLUDED, BUT:

excluded subjects = international relations | external/internal security
| public order | atomic energy | space

full bench considers initiation

>= two-thirds of Members approve

inquiry in camera

if dismissed, inquiry records not published/made available

MP RULE:

section 14(2) preserves Article 105(2) for speech/vote in Parliament

SITA SOREN (2024): bribery itself is not protected by Articles 105(2)/194(2)

TRAP: bribery immunity was rejected; legislative privilege was not abolished.

[6/12] COMPLAINT AND PRELIMINARY INQUIRY

Complaint = prescribed allegation of a PC Act offence by covered public servant

Complaint Rules 2020 -> Form I + identity + affidavit + particulars + annexures

Registry scrutiny -> form | jurisdiction | limitation | defects

Section 20 choice:

preliminary inquiry to test prima facie case

OR investigation where prima facie case exists, after explanation

PI report: within 60 days from reference

PI ordinarily: 90 days + further 90 days for recorded reasons

>=3-Member bench + hearing -> investigate | departmental/other action | close

TRAP: filing defect, closure and false complaint are three different conclusions.

[7/12] INVESTIGATION, SANCTION, PROSECUTION AND TRIAL

Investigation by CBI/DSPE or other agency

-> 6 months from order

-> extension <=6 months at a time, reasons recorded
Agency report -> jurisdictional court + copy to Lokpal
>=3-Member bench + comments -> charge-sheet/sanction | closure | departmental action
Section 23: Lokpal sanction in section 20 route, subject to constitutional-office limit
Section 24: special route after findings against PM, Union Minister or MP
Section 12 Prosecution Wing / agency -> Special Court
Section 35 trial target: 1 year; 3-month reasoned extensions; total <=2 years
TRAP: sanction or charge-sheet is not conviction.

[8/12] INQUIRY WING, CVC AND CBI/DSPE

Inquiry Wing (s.11) -> preliminary inquiry, not police trial
Prosecution Wing (s.12) -> files/conducts prosecution when directed
CVC route under s.20:
Groups A/B -> preliminary report returns to Lokpal
Groups C/D -> CVC Act route
DSPE/CBI under s.25:
superintendence/direction only for Lokpal-referred matters
no direction to investigate/dispose in a particular manner
referred-case investigating officer transfer needs Lokpal approval
CVO = departmental vigilance node; not CVC, CBI, prosecutor or court.

[9/12] SEARCH, ATTACHMENT, CONFISCATION AND SAFEGUARDS

Section 26 -> Lokpal may authorise entrusted agency to search/seize
Section 27 -> specified civil-court powers for inquiry
Section 29 -> written reasons + suspected corruption proceeds + concealment risk
-> provisional attachment <=90 days -> sealed material to Special Court
Section 30 -> Prosecution Wing application within 30 days -> court confirmation
acquittal -> restoration with accrued benefits, subject to court order
conviction -> relatable proceeds confiscated and vest in Union
Section 31 -> Special Court interim confiscation; return/value + 5% interest if reversed
TRAP: Lokpal cannot finally confiscate property by administrative declaration.

[10/12] ASSETS, FALSE COMPLAINTS, LIMITATION AND ACCOUNTABILITY

Section 44 after 2016 substitution:
every public servant declares assets/liabilities in prescribed form and manner
Section 45:
conditional rebuttable presumption for wilful non-declaration/misleading information
Section 46:
false AND frivolous or vexatious complaint -> Special Court process
up to 1 year imprisonment + fine up to Rs 1 lakh; compensation/costs possible
good-faith complaint protected
Section 53: complaint after 7 years from alleged offence -> no inquiry/investigation
Sections 13, 40-43, 48:
charged expenditure | budget/grants | CAG audit | annual report to Parliament.

[11/12] LOKAYUKTAS AND FEDERAL VARIATION

Section 63:
every State to establish Lokayukta, if absent, by State law within one year
NO UNIFORM NATIONAL DESIGN for:
composition | appointment | jurisdiction | tenure | removal
suo-motu power | investigation | prosecution | recommendation effect
Maharashtra 1971 -> historical early State inquiry/report model
Karnataka 1984 -> distinct Lokayukta/Upalokayukta investigation/prosecution design
TRAP: never transplant Lokpal's eight-member bench or five-person selection panel to States
REFORM: model minimum safeguards can coexist with State legislative choice.

[12/12] INSTITUTIONAL FIREWALL, TRAPS AND ANSWER SPINE

Lokpal -> complaint routing, referred-case supervision, sanction/directions
CVC -> vigilance advice + specified preliminary inquiries
CVO -> departmental vigilance and disciplinary coordination
CBI/DSPE -> criminal investigation
Prosecutor/Prosecution Wing -> presents case
Special Court -> attachment control, trial, conviction/acquittal/sentence
CAG -> public-account audit | CIC -> RTI disclosure/appeals | courts -> judicial review
NEVER WRITE:
constitutional Lokpal | PM wholly immune | all private persons covered
all CBI cases controlled | every official automatically dismissed | Lokpal convicts
MAINS VERDICT:
broad statutory reach + procedural safeguards, but effectiveness depends on timely
appointments, staffed capacity, agency independence, reasoned transparency and federal fit.

Exactly **32 original MCQs** appear before the PYQ section. Correct-option sequence: ABCDABCDABCDABCDABCDABCDABCDABCD. Questions 25-32 provide targeted remediation while remaining part of the same 32-question original set.

BASIC MCQS / REMEDIATION

MCQ 1. Legal identity

Which statement best describes the Lokpal?

A. It is a statutory anti-corruption ombudsman whose powers and limits arise from the 2013 Act. B. It is an executive body created only by a government resolution. C. It is the investigative division of the CVC. D. It is a constitutional court for corruption offences.

Answer: A.

Option-specific explanations:

- **A:** Correct. Section 3 establishes Lokpal under parliamentary legislation; sections 20 and 35 separate its process role from criminal adjudication.
- **B:** Incorrect. The proposition 'It is an executive body created only by a government resolution.' conflicts with the controlling rule: Section 3 establishes Lokpal under parliamentary legislation; sections 20 and 35 separate its process role from criminal adjudication.
- **C:** Incorrect. The proposition 'It is the investigative division of the CVC.' conflicts with the controlling rule: Section 3 establishes Lokpal under parliamentary legislation; sections 20 and 35 separate its process role from criminal adjudication.
- **D:** Incorrect. The proposition 'It is a constitutional court for corruption offences.' conflicts with the controlling rule: Section 3 establishes Lokpal under parliamentary legislation; sections 20 and 35 separate its process role from criminal adjudication.

Examiner trap 1: Do not convert statutory status into either executive-resolution status or constitutional-court status.

MCQ 2. Composition ceiling

The Lokpal consists of:

A. A Chairperson and not more than ten Members. B. A Chairperson and not more than eight Members. C. A Chairperson and exactly eight Members. D. A Chairperson, eight Members and the CVC as an ex officio Member.

Answer: B.

Option-specific explanations:

- **A:** Incorrect. The proposition 'A Chairperson and not more than ten Members.' conflicts with the controlling rule: Section 3 fixes one Chairperson and a ceiling of eight Members; it neither guarantees all seats are filled nor adds the CVC.
- **B:** Correct. Section 3 fixes one Chairperson and a ceiling of eight Members; it neither guarantees all seats are filled nor adds the CVC.
- **C:** Incorrect. The proposition 'A Chairperson and exactly eight Members.' conflicts with the controlling rule: Section 3 fixes one Chairperson and a ceiling of eight Members; it neither guarantees all seats are filled nor adds the CVC.
- **D:** Incorrect. The proposition 'A Chairperson, eight Members and the CVC as an ex officio Member.' conflicts with the controlling rule: Section 3 fixes one Chairperson and a ceiling of eight Members; it neither guarantees all seats are filled nor adds the CVC.

Examiner trap 2: Read 'not exceeding' as a ceiling, not a mandatory filled strength.

MCQ 3. Percentage rules

Which composition statement is correct?

A. The representation rule applies only to non-judicial Members. B. Half of the whole institution, including the Chairperson, must be judicial. C. Fifty per cent of the Members shall be Judicial Members, and not less than fifty per cent of Members must satisfy the listed representation rule. D. At least half of the Members must be serving judges.

Answer: C.

Option-specific explanations:

- **A:** Incorrect. The proposition 'The representation rule applies only to non-judicial Members.' conflicts with the controlling rule: Section 3 uses Members as the denominator for both the judicial share and the SC/ST/OBC/minority/women floor; the categories may overlap.
- **B:** Incorrect. The proposition 'Half of the whole institution, including the Chairperson, must be judicial.' conflicts with the controlling rule: Section 3 uses Members as the denominator for both the judicial share and the SC/ST/OBC/minority/women floor; the categories may overlap.
- **C:** Correct. Section 3 uses Members as the denominator for both the judicial share and the SC/ST/OBC/minority/women floor; the categories may overlap.
- **D:** Incorrect. The proposition 'At least half of the Members must be serving judges.' conflicts with the controlling rule: Section 3 uses Members as the denominator for both the judicial share and the SC/ST/OBC/minority/women floor; the categories may overlap.

Examiner trap 3: UPSC may change the denominator, replace a floor with an exact quota, or require serving judges.

MCQ 4. Chairperson eligibility

Who may be appointed Chairperson under section 3?

A. Only a former Chief Justice of India. B. Only a Supreme Court Judge. C. Only a serving Chief Justice of India. D. A serving or former CJI, a serving or former Supreme Court Judge, or an eminent person satisfying the statutory expertise condition.

Answer: D.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Only a former Chief Justice of India.' conflicts with the controlling rule: The Act provides judicial routes and an eminent-person route linked to the integrity, ability and expertise criteria for a non-judicial Member.
- **B:** Incorrect. The proposition 'Only a Supreme Court Judge.' conflicts with the controlling rule: The Act provides judicial routes and an eminent-person route linked to the integrity, ability and expertise criteria for a non-judicial Member.
- **C:** Incorrect. The proposition 'Only a serving Chief Justice of India.' conflicts with the controlling rule: The Act provides judicial routes and an eminent-person route linked to the integrity, ability and expertise criteria for a non-judicial Member.
- **D:** Correct. The Act provides judicial routes and an eminent-person route linked to the integrity, ability and expertise criteria for a non-judicial Member.

Examiner trap 4: The Chairperson's office is not reserved exclusively for a former CJI.

MCQ 5. Non-judicial expertise

A non-judicial Member must ordinarily possess:

- A. At least twenty-five years of special knowledge and expertise in the listed fields. B. Thirty years in any occupation.
C. Ten years of judicial office. D. Twenty years as a Member of Parliament.

Answer: A.

Option-specific explanations:

- **A:** Correct. Section 3 specifies at least 25 years in anti-corruption policy, public administration, vigilance, finance including insurance and banking, law or management.
- **B:** Incorrect. The proposition 'Thirty years in any occupation.' conflicts with the controlling rule: Section 3 specifies at least 25 years in anti-corruption policy, public administration, vigilance, finance including insurance and banking, law or management.
- **C:** Incorrect. The proposition 'Ten years of judicial office.' conflicts with the controlling rule: Section 3 specifies at least 25 years in anti-corruption policy, public administration, vigilance, finance including insurance and banking, law or management.
- **D:** Incorrect. The proposition 'Twenty years as a Member of Parliament.' conflicts with the controlling rule: Section 3 specifies at least 25 years in anti-corruption policy, public administration, vigilance, finance including insurance and banking, law or management.

Examiner trap 5: Do not replace a listed-field expertise test with generic seniority.

MCQ 6. Disqualification

Which person is not expressly disqualified merely by the stated fact?

- A. A sitting Member of Parliament. B. A retired civil servant aged sixty who otherwise satisfies every statutory condition. C. A sitting member of a Municipality. D. A person removed or dismissed from Union or State service.

Answer: B.

Option-specific explanations:

- **A:** Incorrect. The proposition 'A sitting Member of Parliament.' conflicts with the controlling rule: Retirement from public service is not itself a bar; section 3(4) separately lists legislative office, local-body membership, removal/dismissal, age and incompatibilities.
- **B:** Correct. Retirement from public service is not itself a bar; section 3(4) separately lists legislative office, local-body membership, removal/dismissal, age and incompatibilities.
- **C:** Incorrect. The proposition 'A sitting member of a Municipality.' conflicts with the controlling rule: Retirement from public service is not itself a bar; section 3(4) separately lists legislative office, local-body membership, removal/dismissal, age and incompatibilities.
- **D:** Incorrect. The proposition 'A person removed or dismissed from Union or State service.' conflicts with the controlling rule: Retirement from public service is not itself a bar; section 3(4) separately lists legislative office, local-body membership, removal/dismissal, age and incompatibilities.

Examiner trap 6: Do not confuse prior public service with disqualifying removal from service.

MCQ 7. Selection Committee

The statutory Selection Committee for Lokpal appointments includes:

- A. President, Prime Minister, CJI, CVC and Attorney General. B. Prime Minister, Rajya Sabha Chairman, Lok Sabha LoP, CJI and CVC. C. Prime Minister, Lok Sabha Speaker, Lok Sabha LoP, CJI or nominee, and an eminent jurist. D. Prime Minister, Home Minister, Lok Sabha LoP, CJI and Cabinet Secretary.

Answer: C.

Option-specific explanations:

- **A:** Incorrect. The proposition 'President, Prime Minister, CJI, CVC and Attorney General.' conflicts with the controlling rule: Section 4 names the Prime Minister as chair, Speaker, Lok Sabha LoP, CJI or nominated Supreme Court judge, and one eminent jurist.
- **B:** Incorrect. The proposition 'Prime Minister, Rajya Sabha Chairman, Lok Sabha LoP, CJI and CVC.' conflicts with the controlling rule: Section 4 names the Prime Minister as chair, Speaker, Lok Sabha LoP, CJI or nominated Supreme Court judge, and one eminent jurist.
- **C:** Correct. Section 4 names the Prime Minister as chair, Speaker, Lok Sabha LoP, CJI or nominated Supreme Court judge, and one eminent jurist.
- **D:** Incorrect. The proposition 'Prime Minister, Home Minister, Lok Sabha LoP, CJI and Cabinet Secretary.' conflicts with the controlling rule: Section 4 names the Prime Minister as chair, Speaker, Lok Sabha LoP, CJI or nominated Supreme Court judge, and one eminent jurist.

Examiner trap 7: A plausible office from the CVC or CBI appointment process is not automatically a Lokpal selector.

MCQ 8. Eminent jurist route

The eminent jurist on the Selection Committee is:

A. Nominated by the Chief Justice of India alone. B. Selected finally by the Search Committee. C. Elected by a joint sitting of Parliament. D. Nominated by the President on recommendation of the other four Selection Committee members.

Answer: D.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Nominated by the Chief Justice of India alone.' conflicts with the controlling rule: Section 4(1)(e) assigns nomination to the President on the recommendation of the first four members of the Selection Committee.
- **B:** Incorrect. The proposition 'Selected finally by the Search Committee.' conflicts with the controlling rule: Section 4(1)(e) assigns nomination to the President on the recommendation of the first four members of the Selection Committee.
- **C:** Incorrect. The proposition 'Elected by a joint sitting of Parliament.' conflicts with the controlling rule: Section 4(1)(e) assigns nomination to the President on the recommendation of the first four members of the Selection Committee.
- **D:** Correct. Section 4(1)(e) assigns nomination to the President on the recommendation of the first four members of the Selection Committee.

Examiner trap 8: The President is the formal nominator, but the recommendation source is statutorily specified.

MCQ 9. Search Committee

Which statement about the Search Committee is correct?

A. It has at least seven experts, a statutory representation floor and prepares a panel that does not bind the Selection Committee exclusively. B. It makes the final appointment by warrant. C. It may consider only serving judges. D. It consists of exactly five constitutional office-holders.

Answer: A.

Option-specific explanations:

- **A:** Correct. Section 4(3) requires at least seven persons with listed expertise, a 50 per cent diversity floor, and permits selection beyond its recommended panel.
- **B:** Incorrect. The proposition 'It makes the final appointment by warrant.' conflicts with the controlling rule: Section 4(3) requires at least seven persons with listed expertise, a 50 per cent diversity floor, and permits selection beyond its recommended panel.
- **C:** Incorrect. The proposition 'It may consider only serving judges.' conflicts with the controlling rule: Section 4(3) requires at least seven persons with listed expertise, a 50 per cent diversity floor, and permits selection beyond its

recommended panel.

- **D:** Incorrect. The proposition 'It consists of exactly five constitutional office-holders.' conflicts with the controlling rule: Section 4(3) requires at least seven persons with listed expertise, a 50 per cent diversity floor, and permits selection beyond its recommended panel.

Examiner trap 9: Search and selection are different stages; the Search Committee is neither appointing authority nor exclusive gatekeeper.

MCQ 10. Vacancy and Common Cause

Under section 4(2) and Common Cause v. Union of India (2017), which proposition is safest?

A. The Search Committee becomes the appointing authority whenever the LoP post is vacant. B. A vacancy does not by itself invalidate appointment proceedings, so implementation need not await a statutory amendment. C. Every appointment without a recognised LoP is automatically void. D. The Act permanently substitutes the leader of the largest opposition party for the LoP.

Answer: B.

Option-specific explanations:

- **A:** Incorrect. The proposition 'The Search Committee becomes the appointing authority whenever the LoP post is vacant.' conflicts with the controlling rule: Section 4(2) validates action despite a Selection Committee vacancy, and Common Cause held the Act workable without waiting for proposed amendments.
- **B:** Correct. Section 4(2) validates action despite a Selection Committee vacancy, and Common Cause held the Act workable without waiting for proposed amendments.
- **C:** Incorrect. The proposition 'Every appointment without a recognised LoP is automatically void.' conflicts with the controlling rule: Section 4(2) validates action despite a Selection Committee vacancy, and Common Cause held the Act workable without waiting for proposed amendments.
- **D:** Incorrect. The proposition 'The Act permanently substitutes the leader of the largest opposition party for the LoP.' conflicts with the controlling rule: Section 4(2) validates action despite a Selection Committee vacancy, and Common Cause held the Act workable without waiting for proposed amendments.

Examiner trap 10: Do not turn a vacancy-saving clause into a textual largest-opposition-party substitution.

MCQ 11. Tenure

The ordinary tenure rule for the Chairperson or a Member is:

A. Five years without an age ceiling. B. Six years or age sixty-five, whichever is earlier. C. Five years or age seventy, whichever is earlier. D. Four years or age seventy, whichever is earlier.

Answer: C.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Five years without an age ceiling.' conflicts with the controlling rule: Section 6 fixes five years from entering office or attainment of age 70, whichever occurs earlier.
- **B:** Incorrect. The proposition 'Six years or age sixty-five, whichever is earlier.' conflicts with the controlling rule: Section 6 fixes five years from entering office or attainment of age 70, whichever occurs earlier.
- **C:** Correct. Section 6 fixes five years from entering office or attainment of age 70, whichever occurs earlier.
- **D:** Incorrect. The proposition 'Four years or age seventy, whichever is earlier.' conflicts with the controlling rule: Section 6 fixes five years from entering office or attainment of age 70, whichever occurs earlier.

Examiner trap 11: Lokpal tenure must not be borrowed from the CVC, CIC or Election Commission.

MCQ 12. Post-tenure restriction

Which post-tenure proposition is correct?

A. Every Member may be reappointed for another full five-year term. B. A former Member may accept any Union office of profit. C. A former Chairperson may immediately contest a parliamentary election. D. A Member may become Chairperson only if aggregate Lokpal tenure does not exceed five years.

Answer: D.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Every Member may be reappointed for another full five-year term.' conflicts with the controlling rule: Section 8 bars ordinary reappointment and specified assignments/employment/elections, while allowing Member-to-Chairperson elevation within a five-year aggregate.
- **B:** Incorrect. The proposition 'A former Member may accept any Union office of profit.' conflicts with the controlling rule: Section 8 bars ordinary reappointment and specified assignments/employment/elections, while allowing Member-to-Chairperson elevation within a five-year aggregate.
- **C:** Incorrect. The proposition 'A former Chairperson may immediately contest a parliamentary election.' conflicts with the controlling rule: Section 8 bars ordinary reappointment and specified assignments/employment/elections, while allowing Member-to-Chairperson elevation within a five-year aggregate.
- **D:** Correct. Section 8 bars ordinary reappointment and specified assignments/employment/elections, while allowing Member-to-Chairperson elevation within a five-year aggregate.

Examiner trap 12: The Member-to-Chairperson exception does not restart the tenure clock.

MCQ 13. Removal route

Removal for misbehaviour ordinarily requires:

A. A petition signed by at least one hundred MPs, Presidential reference and Supreme Court inquiry. B. A Cabinet resolution followed by departmental inquiry. C. An internal Lokpal inquiry and majority vote. D. A simple-majority resolution of the Lok Sabha.

Answer: A.

Option-specific explanations:

- **A:** Correct. Section 37 places proved misbehaviour on a petition-reference-Supreme Court inquiry route and bars Lokpal from inquiring into its own Chairperson or Member.
- **B:** Incorrect. The proposition 'A Cabinet resolution followed by departmental inquiry.' conflicts with the controlling rule: Section 37 places proved misbehaviour on a petition-reference-Supreme Court inquiry route and bars Lokpal from inquiring into its own Chairperson or Member.
- **C:** Incorrect. The proposition 'An internal Lokpal inquiry and majority vote.' conflicts with the controlling rule: Section 37 places proved misbehaviour on a petition-reference-Supreme Court inquiry route and bars Lokpal from inquiring into its own Chairperson or Member.
- **D:** Incorrect. The proposition 'A simple-majority resolution of the Lok Sabha.' conflicts with the controlling rule: Section 37 places proved misbehaviour on a petition-reference-Supreme Court inquiry route and bars Lokpal from inquiring into its own Chairperson or Member.

Examiner trap 13: Use section 37's own threshold; do not import impeachment or CVC formulas.

MCQ 14. Direct removal ground

Which is a direct presidential removal ground under section 37(4)?

A. An adverse newspaper editorial. B. Being adjudged insolvent. C. Dissent from a majority decision of Lokpal. D. Policy disagreement with the Union Government.

Answer: B.

Option-specific explanations:

- **A:** Incorrect. The proposition 'An adverse newspaper editorial.' conflicts with the controlling rule: Insolvency is listed, along with paid outside employment during tenure and qualifying infirmity of mind or body.
- **B:** Correct. Insolvency is listed, along with paid outside employment during tenure and qualifying infirmity of mind or body.
- **C:** Incorrect. The proposition 'Dissent from a majority decision of Lokpal.' conflicts with the controlling rule: Insolvency is listed, along with paid outside employment during tenure and qualifying infirmity of mind or body.
- **D:** Incorrect. The proposition 'Policy disagreement with the Union Government.' conflicts with the controlling rule: Insolvency is listed, along with paid outside employment during tenure and qualifying infirmity of mind or body.

Examiner trap 14: Direct grounds are narrow statutory facts, not political dissatisfaction.

MCQ 15. Prime Minister screen

A complaint concerning the Prime Minister may proceed only if, among other conditions:

A. The CVC unanimously approves. B. Each House of Parliament first passes a resolution. C. The full Lokpal bench considers initiation and at least two-thirds of its Members approve. D. The Chief Justice of India conducts the preliminary inquiry.

Answer: C.

Option-specific explanations:

- **A:** Incorrect. The proposition 'The CVC unanimously approves.' conflicts with the controlling rule: Section 14 requires full-bench consideration and approval by at least two-thirds, in addition to subject exclusions and in-camera treatment.
- **B:** Incorrect. The proposition 'Each House of Parliament first passes a resolution.' conflicts with the controlling rule: Section 14 requires full-bench consideration and approval by at least two-thirds, in addition to subject exclusions and in-camera treatment.
- **C:** Correct. Section 14 requires full-bench consideration and approval by at least two-thirds, in addition to subject exclusions and in-camera treatment.
- **D:** Incorrect. The proposition 'The Chief Justice of India conducts the preliminary inquiry.' conflicts with the controlling rule: Section 14 requires full-bench consideration and approval by at least two-thirds, in addition to subject exclusions and in-camera treatment.

Examiner trap 15: PM coverage is neither ordinary identical treatment nor complete immunity.

MCQ 16. PM confidentiality

If a complaint against the Prime Minister is dismissed after the special inquiry:

A. It must be tabled immediately in Parliament. B. Only the complainant may publish the record. C. It must be published after thirty days. D. The inquiry records shall not be published or made available to anyone.

Answer: D.

Option-specific explanations:

- **A:** Incorrect. The proposition 'It must be tabled immediately in Parliament.' conflicts with the controlling rule: The second proviso to section 14(1)(a) creates this specific non-publication rule for a dismissed PM inquiry.
- **B:** Incorrect. The proposition 'Only the complainant may publish the record.' conflicts with the controlling rule: The second proviso to section 14(1)(a) creates this specific non-publication rule for a dismissed PM inquiry.

- **C:** Incorrect. The proposition 'It must be published after thirty days.' conflicts with the controlling rule: The second proviso to section 14(1)(a) creates this specific non-publication rule for a dismissed PM inquiry.
- **D:** Correct. The second proviso to section 14(1)(a) creates this specific non-publication rule for a dismissed PM inquiry.

Examiner trap 16: Do not generalise the PM-specific secrecy rule to every Lokpal proceeding.

MCQ 17. Privilege after Sita Soren

Which proposition correctly reconciles section 14(2) with Sita Soren (2024)?

A. Genuine parliamentary speech or vote remains protected, but bribery connected with it is not immunised. B. Members of Parliament are wholly outside Lokpal jurisdiction. C. Every parliamentary speech may be treated as corruption evidence without constitutional limit. D. Article 105(2) was judicially repealed.

Answer: A.

Option-specific explanations:

- **A:** Correct. Sita Soren held that bribery is not protected by Articles 105(2) or 194(2), while the constitutional immunity for the legislative act itself remains.
- **B:** Incorrect. The proposition 'Members of Parliament are wholly outside Lokpal jurisdiction.' conflicts with the controlling rule: Sita Soren held that bribery is not protected by Articles 105(2) or 194(2), while the constitutional immunity for the legislative act itself remains.
- **C:** Incorrect. The proposition 'Every parliamentary speech may be treated as corruption evidence without constitutional limit.' conflicts with the controlling rule: Sita Soren held that bribery is not protected by Articles 105(2) or 194(2), while the constitutional immunity for the legislative act itself remains.
- **D:** Incorrect. The proposition 'Article 105(2) was judicially repealed.' conflicts with the controlling rule: Sita Soren held that bribery is not protected by Articles 105(2) or 194(2), while the constitutional immunity for the legislative act itself remains.

Examiner trap 17: Separate the protected speech/vote from the independently complete offence of bribery.

MCQ 18. CVC routing

Where Lokpal chooses preliminary inquiry for Groups A-D Union officials:

A. Departments conduct the final criminal trial. B. CVC reports on Groups A/B to Lokpal and proceeds under the CVC Act for Groups C/D. C. CBI decides whether Lokpal has jurisdiction. D. Every category goes directly to the Special Court.

Answer: B.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Departments conduct the final criminal trial.' conflicts with the controlling rule: The first two provisos to section 20(1) create a split CVC route: A/B reporting to Lokpal and C/D processing under the CVC Act.
- **B:** Correct. The first two provisos to section 20(1) create a split CVC route: A/B reporting to Lokpal and C/D processing under the CVC Act.
- **C:** Incorrect. The proposition 'CBI decides whether Lokpal has jurisdiction.' conflicts with the controlling rule: The first two provisos to section 20(1) create a split CVC route: A/B reporting to Lokpal and C/D processing under the CVC Act.
- **D:** Incorrect. The proposition 'Every category goes directly to the Special Court.' conflicts with the controlling rule: The first two provisos to section 20(1) create a split CVC route: A/B reporting to Lokpal and C/D processing under the CVC Act.

Examiner trap 18: The route changes by service group and by stage; CVC does not become the trial court.

MCQ 19. Foreign-funded entity boundary

Section 14(1)(h) reaches specified officers of a society, association or trust receiving:

A. Only grants from the United Nations. B. Any domestic donation of any amount. C. Foreign-source donation exceeding ten lakh rupees in a year, or a higher amount notified by the Central Government. D. Any government grant without the separate statutory conditions.

Answer: C.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Only grants from the United Nations.' conflicts with the controlling rule: Clause (h) uses a foreign-source donation threshold above Rs 10 lakh in a year, subject to any higher amount formally notified.
- **B:** Incorrect. The proposition 'Any domestic donation of any amount.' conflicts with the controlling rule: Clause (h) uses a foreign-source donation threshold above Rs 10 lakh in a year, subject to any higher amount formally notified.
- **C:** Correct. Clause (h) uses a foreign-source donation threshold above Rs 10 lakh in a year, subject to any higher amount formally notified.
- **D:** Incorrect. The proposition 'Any government grant without the separate statutory conditions.' conflicts with the controlling rule: Clause (h) uses a foreign-source donation threshold above Rs 10 lakh in a year, subject to any higher amount formally notified.

Examiner trap 19: Do not confuse clause (h)'s express foreign threshold with clause (g)'s notified income condition.

MCQ 20. Former officeholders

Former public servants under section 14:

A. Become immune on retirement. B. Remain covered for every private act throughout life. C. Are covered only if re-employed by government. D. May be covered for alleged conduct during the period in which they served in the relevant statutory capacity.

Answer: D.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Become immune on retirement.' conflicts with the controlling rule: Section 14 repeatedly uses 'is or has been', while its explanation ties the complaint to the period of covered public service.
- **B:** Incorrect. The proposition 'Remain covered for every private act throughout life.' conflicts with the controlling rule: Section 14 repeatedly uses 'is or has been', while its explanation ties the complaint to the period of covered public service.
- **C:** Incorrect. The proposition 'Are covered only if re-employed by government.' conflicts with the controlling rule: Section 14 repeatedly uses 'is or has been', while its explanation ties the complaint to the period of covered public service.
- **D:** Correct. Section 14 repeatedly uses 'is or has been', while its explanation ties the complaint to the period of covered public service.

Examiner trap 20: Post-tenure coverage follows the time of conduct, not a general lifelong public-servant label.

MCQ 21. Complaint Rules

Which filing requirement is consistent with the Lokpal (Complaint) Rules, 2020?

A. A prescribed form accompanied by identity material, a signed allegation and the required affidavit/annexures. B. Anonymous oral information with no prescribed particulars. C. Prior consent of the accused public servant. D. Mandatory filing only through an advocate.

Answer: A.

Option-specific explanations:

- **A:** Correct. The 2020 Rules structure complaints through Form I, filing modes, identity and supporting documents, and an affidavit.
- **B:** Incorrect. The proposition 'Anonymous oral information with no prescribed particulars.' conflicts with the controlling rule: The 2020 Rules structure complaints through Form I, filing modes, identity and supporting documents, and an affidavit.
- **C:** Incorrect. The proposition 'Prior consent of the accused public servant.' conflicts with the controlling rule: The 2020 Rules structure complaints through Form I, filing modes, identity and supporting documents, and an affidavit.
- **D:** Incorrect. The proposition 'Mandatory filing only through an advocate.' conflicts with the controlling rule: The 2020 Rules structure complaints through Form I, filing modes, identity and supporting documents, and an affidavit.

Examiner trap 21: Complaint formalities regulate access; they do not predetermine truth or guilt.

MCQ 22. Inquiry versus investigation

The best distinction between preliminary inquiry and investigation is:

A. Preliminary inquiry is always conducted by a court. B. Preliminary inquiry tests prima facie basis; investigation gathers evidence for the criminal report. C. Investigation is only a departmental proceeding. D. Both are final adjudicatory trials.

Answer: B.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Preliminary inquiry is always conducted by a court.' conflicts with the controlling rule: Sections 2 and 20 assign a screening function to preliminary inquiry and an evidence-gathering criminal-process function to investigation.
- **B:** Correct. Sections 2 and 20 assign a screening function to preliminary inquiry and an evidence-gathering criminal-process function to investigation.
- **C:** Incorrect. The proposition 'Investigation is only a departmental proceeding.' conflicts with the controlling rule: Sections 2 and 20 assign a screening function to preliminary inquiry and an evidence-gathering criminal-process function to investigation.
- **D:** Incorrect. The proposition 'Both are final adjudicatory trials.' conflicts with the controlling rule: Sections 2 and 20 assign a screening function to preliminary inquiry and an evidence-gathering criminal-process function to investigation.

Examiner trap 22: Do not use 'inquiry', 'investigation' and 'trial' as interchangeable words.

MCQ 23. Preliminary-inquiry timing

Which timeline combination is correct under section 20?

A. The preliminary report is due in ninety days and investigation can never be extended. B. Every inquiry and trial must finish within six months. C. The report is due within sixty days of reference; preliminary inquiry is ordinarily ninety days with a further ninety days for recorded reasons. D. Preliminary inquiry always ends in thirty days and investigation in ninety days.

Answer: C.

Option-specific explanations:

- **A:** Incorrect. The proposition 'The preliminary report is due in ninety days and investigation can never be extended.' conflicts with the controlling rule: Section 20(2) supplies the 60-day report rule and section 20(4) the ordinary 90-day plus further 90-day framework.
- **B:** Incorrect. The proposition 'Every inquiry and trial must finish within six months.' conflicts with the controlling rule: Section 20(2) supplies the 60-day report rule and section 20(4) the ordinary 90-day plus further 90-day framework.
- **C:** Correct. Section 20(2) supplies the 60-day report rule and section 20(4) the ordinary 90-day plus further 90-day framework.

- **D:** Incorrect. The proposition 'Preliminary inquiry always ends in thirty days and investigation in ninety days.' conflicts with the controlling rule: Section 20(2) supplies the 60-day report rule and section 20(4) the ordinary 90-day plus further 90-day framework.

Examiner trap 23: The report deadline and overall preliminary-inquiry period are distinct clocks.

MCQ 24. Post-inquiry decision

After considering a preliminary-inquiry report, a bench of at least three Lokpal Members may:

A. Amend the Prevention of Corruption Act. B. Convict the public servant. C. Dissolve the concerned department. D. Order investigation, direct departmental or other action, or close proceedings under statutory conditions.

Answer: D.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Amend the Prevention of Corruption Act.' conflicts with the controlling rule: Section 20(3) specifies investigation, departmental/other action, or closure; legislative amendment and conviction are outside the bench's role.
- **B:** Incorrect. The proposition 'Convict the public servant.' conflicts with the controlling rule: Section 20(3) specifies investigation, departmental/other action, or closure; legislative amendment and conviction are outside the bench's role.
- **C:** Incorrect. The proposition 'Dissolve the concerned department.' conflicts with the controlling rule: Section 20(3) specifies investigation, departmental/other action, or closure; legislative amendment and conviction are outside the bench's role.
- **D:** Correct. Section 20(3) specifies investigation, departmental/other action, or closure; legislative amendment and conviction are outside the bench's role.

Examiner trap 24: A prima facie decision is a routing decision, not a criminal verdict.

MCQ 25. Investigation timing

An investigation directed by Lokpal should ordinarily be completed within:

A. Six months, with reasoned extensions not exceeding six months at a time. B. Seven years. C. Thirty days without extension. D. One year without extension.

Answer: A.

Option-specific explanations:

- **A:** Correct. Section 20(5) sets six months from the order and permits further periods not exceeding six months at a time for written reasons.
- **B:** Incorrect. The proposition 'Seven years.' conflicts with the controlling rule: Section 20(5) sets six months from the order and permits further periods not exceeding six months at a time for written reasons.
- **C:** Incorrect. The proposition 'Thirty days without extension.' conflicts with the controlling rule: Section 20(5) sets six months from the order and permits further periods not exceeding six months at a time for written reasons.
- **D:** Incorrect. The proposition 'One year without extension.' conflicts with the controlling rule: Section 20(5) sets six months from the order and permits further periods not exceeding six months at a time for written reasons.

Examiner trap 25: The seven-year number is the complaint limitation, not the investigation period.

MCQ 26. DSPE superintendence

Lokpal's superintendence over the DSPE:

A. Eliminates every State-consent requirement. B. Applies to Lokpal-referred matters but cannot dictate investigation or disposal in a particular manner. C. Extends automatically to every CBI case in India. D. Makes Lokpal the administrative Director of CBI.

Answer: B.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Eliminates every State-consent requirement.' conflicts with the controlling rule: Section 25 is expressly confined to matters referred under the Act and contains an anti-dictation proviso.
- **B:** Correct. Section 25 is expressly confined to matters referred under the Act and contains an anti-dictation proviso.
- **C:** Incorrect. The proposition 'Extends automatically to every CBI case in India.' conflicts with the controlling rule: Section 25 is expressly confined to matters referred under the Act and contains an anti-dictation proviso.
- **D:** Incorrect. The proposition 'Makes Lokpal the administrative Director of CBI.' conflicts with the controlling rule: Section 25 is expressly confined to matters referred under the Act and contains an anti-dictation proviso.

Examiner trap 26: Superintendence is neither nationwide ownership of CBI nor power to command a predetermined result.

MCQ 27. Investigator transfer

A DSPE officer investigating a Lokpal-referred case:

A. Is appointed by the complainant. B. Can never be transferred under any circumstance. C. Cannot be transferred without Lokpal approval. D. May be transferred only by a resolution of Parliament.

Answer: C.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Is appointed by the complainant.' conflicts with the controlling rule: Section 25(3) requires Lokpal approval for transfer of the officer investigating its referred case.
- **B:** Incorrect. The proposition 'Can never be transferred under any circumstance.' conflicts with the controlling rule: Section 25(3) requires Lokpal approval for transfer of the officer investigating its referred case.
- **C:** Correct. Section 25(3) requires Lokpal approval for transfer of the officer investigating its referred case.
- **D:** Incorrect. The proposition 'May be transferred only by a resolution of Parliament.' conflicts with the controlling rule: Section 25(3) requires Lokpal approval for transfer of the officer investigating its referred case.

Examiner trap 27: The safeguard is case-specific and is not an absolute lifetime transfer ban.

MCQ 28. Search power

Under section 26:

A. Search is barred before completion of trial. B. Lokpal Members personally conduct every physical search. C. CVC issues every search warrant in a Lokpal matter. D. Lokpal may authorise the agency entrusted with investigation to search for and seize relevant secreted documents.

Answer: D.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Search is barred before completion of trial.' conflicts with the controlling rule: Section 26 is an authorisation power exercised through the entrusted investigating agency, subject to statutory conditions.
- **B:** Incorrect. The proposition 'Lokpal Members personally conduct every physical search.' conflicts with the controlling rule: Section 26 is an authorisation power exercised through the entrusted investigating agency, subject to statutory conditions.
- **C:** Incorrect. The proposition 'CVC issues every search warrant in a Lokpal matter.' conflicts with the controlling rule: Section 26 is an authorisation power exercised through the entrusted investigating agency, subject to

statutory conditions.

- **D:** Correct. Section 26 is an authorisation power exercised through the entrusted investigating agency, subject to statutory conditions.

Examiner trap 28: A power to authorise search does not convert Lokpal into a police force.

MCQ 29. Civil-court powers

The Inquiry Wing's specified civil-court powers include:

A. Summoning persons and requiring production of documents during preliminary inquiry. B. Declaring Acts of Parliament unconstitutional. C. Exercising a general contempt jurisdiction. D. Awarding criminal sentences.

Answer: A.

Option-specific explanations:

- **A:** Correct. Section 27 confers enumerated evidence-gathering powers such as summons and document production for preliminary inquiry.
- **B:** Incorrect. The proposition 'Declaring Acts of Parliament unconstitutional.' conflicts with the controlling rule: Section 27 confers enumerated evidence-gathering powers such as summons and document production for preliminary inquiry.
- **C:** Incorrect. The proposition 'Exercising a general contempt jurisdiction.' conflicts with the controlling rule: Section 27 confers enumerated evidence-gathering powers such as summons and document production for preliminary inquiry.
- **D:** Incorrect. The proposition 'Awarding criminal sentences.' conflicts with the controlling rule: Section 27 confers enumerated evidence-gathering powers such as summons and document production for preliminary inquiry.

Examiner trap 29: Limited civil-court powers do not create a court of plenary jurisdiction.

MCQ 30. Provisional attachment

Provisional attachment under section 29 may ordinarily last:

A. Indefinitely at Lokpal's discretion. B. Up to ninety days, with the order and material immediately placed before the Special Court. C. Until the public servant retires. D. Thirty days without judicial involvement.

Answer: B.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Indefinitely at Lokpal's discretion.' conflicts with the controlling rule: Section 29 caps the initial attachment at 90 days and requires immediate sealed transmission to the Special Court; section 30 adds a 30-day confirmation application.
- **B:** Correct. Section 29 caps the initial attachment at 90 days and requires immediate sealed transmission to the Special Court; section 30 adds a 30-day confirmation application.
- **C:** Incorrect. The proposition 'Until the public servant retires.' conflicts with the controlling rule: Section 29 caps the initial attachment at 90 days and requires immediate sealed transmission to the Special Court; section 30 adds a 30-day confirmation application.
- **D:** Incorrect. The proposition 'Thirty days without judicial involvement.' conflicts with the controlling rule: Section 29 caps the initial attachment at 90 days and requires immediate sealed transmission to the Special Court; section 30 adds a 30-day confirmation application.

Examiner trap 30: Keep the 90-day attachment period separate from the 30-day application deadline.

MCQ 31. Prosecution sanction

Lokpal's prosecution-sanction power:

A. Applies without qualification to every constitutional office-holder. B. Replaces the Special Court's trial jurisdiction. C. Authorises prosecution in the section 20 route, subject to section 23's constitutional-office qualification. D. Is legally identical to conviction.

Answer: C.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Applies without qualification to every constitutional office-holder.' conflicts with the controlling rule: Section 23 overrides specified ordinary sanction provisions for the section 20(7)(a) route but preserves offices with constitutionally specified removal procedures.
- **B:** Incorrect. The proposition 'Replaces the Special Court's trial jurisdiction.' conflicts with the controlling rule: Section 23 overrides specified ordinary sanction provisions for the section 20(7)(a) route but preserves offices with constitutionally specified removal procedures.
- **C:** Correct. Section 23 overrides specified ordinary sanction provisions for the section 20(7)(a) route but preserves offices with constitutionally specified removal procedures.
- **D:** Incorrect. The proposition 'Is legally identical to conviction.' conflicts with the controlling rule: Section 23 overrides specified ordinary sanction provisions for the section 20(7)(a) route but preserves offices with constitutionally specified removal procedures.

Examiner trap 31: Sanction permits prosecution; it does not establish the offence.

MCQ 32. Special Court timing

The Special Court is expected to complete a trial:

A. Within six months with no extension. B. Within three months in every case. C. Whenever Lokpal directs, without a statutory target. D. Within one year, with recorded three-month extensions but a total period not exceeding two years.

Answer: D.

Option-specific explanations:

- **A:** Incorrect. The proposition 'Within six months with no extension.' conflicts with the controlling rule: Section 35 sets a one-year target and permits reasoned extensions of not more than three months each, subject to a two-year total ceiling.
- **B:** Incorrect. The proposition 'Within three months in every case.' conflicts with the controlling rule: Section 35 sets a one-year target and permits reasoned extensions of not more than three months each, subject to a two-year total ceiling.
- **C:** Incorrect. The proposition 'Whenever Lokpal directs, without a statutory target.' conflicts with the controlling rule: Section 35 sets a one-year target and permits reasoned extensions of not more than three months each, subject to a two-year total ceiling.
- **D:** Correct. Section 35 sets a one-year target and permits reasoned extensions of not more than three months each, subject to a two-year total ceiling.

Examiner trap 32: The three-month figure is an extension unit, not the ordinary trial period.

PYQS AND ANSWER PRACTICE

Verified direct Prelims PYQ - Civil Services Preliminary Examination 2025, GS Paper I, Set A, Question 98

Consider the following statements about Lokpal: I. The power of Lokpal applies to public servants of India, but not to the Indian public servants posted outside India. II. The Chairperson or a Member shall not be a Member of the Parliament or a Member of the Legislature of any State or Union Territory, and only the Chief Justice of India, whether incumbent or retired, has to be its Chairperson. III. The Chairperson or a Member shall not be a person of less than forty-five years of age on the date of assuming office as the Chairperson or Member, as the case may be. IV. Lokpal cannot inquire into the allegations of corruption against a sitting Prime Minister of India. Which of the statements given above is/are correct? (a) III only (b) II and III (c) I and IV (d) None of the above statements is correct

Official Set-A key: A - III only. The local official UPSC paper and answer-key PDF were checked directly.

Statement	Verdict	Statutory reason
I	False	Section 1(3) applies the Act to public servants in and outside India.
II	False as a compound statement	The office-holding disqualification is correct, but section 3 does not restrict the Chairperson to only the CJI.
III	True	Section 3(4)(iii) fixes the minimum age at 45.
IV	False	Section 14 includes a serving Prime Minister subject to special exclusions and procedure.

PYQ trap: A compound statement fails if one limb is false; statement II uses a true disqualification to conceal a false exclusivity claim.

Original solved Mains practice

The following six questions are original practice, not UPSC PYQs. The models are deliberately capped at the stated limits.

Mains 1 - 10 marks | 150 words

Question: "Lokpal is an ombudsman, not a corruption court." Explain.

Demand: Answer the exact directive, use statutory/case evidence, explain what it proves, and finish with a qualified verdict.

Model answer

The Lokpal is a statutory Union anti-corruption ombudsman under the 2013 Act. Its authority is significant but process-oriented.

Claim: Lokpal can move a complaint toward accountability. **Named evidence:** sections 20, 23, 25 and 29 permit inquiry or investigation routing, prosecution sanction, supervision of referred DSPE matters and provisional attachment. **Analysis:** these powers make it more than a merely recommendatory grievance office. **Qualification:** each power is bounded by statute, hearing requirements and court control.

Claim: Criminal guilt remains judicial. **Named evidence:** sections 30-31 place attachment/confiscation under the Special Court, while section 35 assigns trial to Special Courts. **Analysis:** preliminary inquiry tests a prima facie case, investigation gathers evidence and prosecution presents it. **Qualification:** none equals conviction.

Therefore, Lokpal is a powerful institutional gateway and coordinator, but the Special Court alone may convict and sentence.

Audited model length: 134 words (ceiling: 150).

Why this earns marks: It uses claim -> named evidence -> analysis -> qualification and directly answers the directive without treating allegations, sanction or prosecution as guilt.

Mains 2 - 10 marks | 150 words

Question: Explain the special statutory safeguards governing a corruption complaint against the Prime Minister.

Demand: Answer the exact directive, use statutory/case evidence, explain what it proves, and finish with a qualified verdict.

Model answer

Section 14 includes a serving or former Prime Minister, but uses exceptional filters.

Claim: Sensitive sovereign functions receive a subject-matter shield. **Named evidence:** allegations relating to international relations, external or internal security, public order, atomic energy and space are excluded. **Analysis:** the exclusion protects core State interests. **Qualification:** it is not blanket personal immunity.

Claim: initiation carries a high institutional threshold. **Named evidence:** the full Lokpal bench must consider the matter and at least two-thirds of its Members must approve. The inquiry is in camera; if dismissed, its records cannot be published or made available. **Analysis:** these rules deter partisan fishing and protect confidentiality. **Qualification:** secrecy can reduce public visibility and therefore requires scrupulous internal reason-giving.

Thus, the Act balances Prime Ministerial accountability with stability and sensitive-information safeguards.

Audited model length: 128 words (ceiling: 150).

Why this earns marks: It uses claim -> named evidence -> analysis -> qualification and directly answers the directive without treating allegations, sanction or prosecution as guilt.

Mains 3 - 15 marks | 250 words

Question: Analyse the Lokpal-CVC-CBI relationship. Why is it misleading to describe it as a simple hierarchy?

Demand: Answer the exact directive, use statutory/case evidence, explain what it proves, and finish with a qualified verdict.

Model answer

The three bodies share an anti-corruption objective but possess different legal identities and stage-specific powers.

Claim: Lokpal controls entry and statutory routing. **Named evidence:** section 20 allows preliminary inquiry or investigation and sends specified Groups A-D preliminary-inquiry matters to the CVC. **Analysis:** for Groups A/B the report returns to Lokpal; Groups C/D continue under the CVC Act. **Qualification:** CVC retains its independent vigilance statute.

Claim: CBI/DSPE supplies criminal-investigation capacity. **Named evidence:** sections 20 and 25 permit referral to DSPE and give Lokpal superintendence over referred matters. **Analysis:** transfer approval for the investigating officer protects continuity. **Qualification:** the anti-dictation proviso bars an order to investigate or dispose of a case in a predetermined manner, and non-referred CBI work is outside this control.

Claim: prosecution and judgment remain separate. **Named evidence:** sections 12, 23 and 35 allocate prosecution to the Prosecution Wing/agency and adjudication to Special Courts. **Analysis:** separation reduces concentration of coercive power. **Qualification:** fragmentation may cause delay.

Hence the system is a network of allocated functions, requiring coordination without legal conflation.

Audited model length: 175 words (ceiling: 250).

Why this earns marks: It uses claim -> named evidence -> analysis -> qualification and directly answers the directive without treating allegations, sanction or prosecution as guilt.

Mains 4 - 15 marks | 250 words

Question: Evaluate whether Lokpal's appointment, tenure and removal design adequately protects independence.

Demand: Answer the exact directive, use statutory/case evidence, explain what it proves, and finish with a qualified verdict.

Model answer

Lokpal's design contains substantial safeguards, though institutional independence ultimately depends on timely and credible implementation.

Claim: appointment is plural. **Named evidence:** section 4 combines the Prime Minister, Lok Sabha Speaker, Leader of Opposition, CJI or nominee and an eminent jurist, assisted by a diverse Search Committee. **Analysis:** multiple constitutional locations reduce unilateral appointment. **Qualification:** the executive remains influential, and the Selection Committee may look beyond the search panel.

Claim: tenure reduces renewal pressure. **Named evidence:** section 6 fixes five years or age seventy; section 8 bars ordinary reappointment and specified post-tenure offices and elections. **Analysis:** this weakens incentives to please the appointing government. **Qualification:** a Member may become Chairperson within an aggregate five-year ceiling.

Claim: removal is protected. **Named evidence:** section 37 requires a petition of at least 100 MPs, Presidential reference and Supreme Court inquiry for misbehaviour. **Analysis:** ordinary executive displeasure cannot remove a Member. **Qualification:** insolvency, paid outside employment and qualifying infirmity permit direct presidential removal.

Common Cause (2017) prevented vacancy from becoming an implementation veto. Yet delays and unfilled capacity can defeat formal autonomy. Independence therefore requires transparent appointments, stable staff and reasoned reporting alongside legal safeguards.

Audited model length: 190 words (ceiling: 250).

Why this earns marks: It uses claim -> named evidence -> analysis -> qualification and directly answers the directive without treating allegations, sanction or prosecution as guilt.

Mains 5 - 20 marks | 250 words

Question: "The Lokpal Act is broad in jurisdiction but filtered in operation." Critically analyse.

Demand: Answer the exact directive, use statutory/case evidence, explain what it proves, and finish with a qualified verdict.

Model answer

The Act creates broad personal reach but channels it through offence, subject, procedure and institutional filters.

Claim: jurisdiction spans high and ordinary public office. **Named evidence:** section 14 covers the Prime Minister, Union Ministers, MPs, Groups A-D officials, former functionaries and specified officers of government-linked or foreign-funded entities. **Analysis:** accountability follows public function and qualifying institutional links. **Qualification:** it is not general jurisdiction over every private person; clause-specific thresholds and State consent may apply.

Claim: high office is specially protected, not wholly immune. **Named evidence:** PM matters face five excluded domains, full-bench consideration, two-thirds approval and in-camera inquiry. MPs retain Article 105(2) protection for genuine speech/vote. **Analysis:** these filters preserve constitutional functioning. **Qualification:** Sita Soren (2024) confirms bribery itself is not privileged.

Claim: operation is procedurally screened. **Named evidence:** Complaint Rules 2020, section 20 hearings and timelines, section 53's seven-year bar, and section 46's good-faith safeguard. **Analysis:** screening protects reputation and fair process. **Qualification:** excessive formalism can chill access.

The statute is therefore neither toothless nor omnipotent: broad reach becomes effective only through sound capacity, independent investigation and transparent, reviewable procedure.

Audited model length: 183 words (ceiling: 250).

Why this earns marks: It uses claim -> named evidence -> analysis -> qualification and directly answers the directive without treating allegations, sanction or prosecution as guilt.

Mains 6 - 20 marks | 250 words

Question: Assess the strengths and weaknesses of the Lokpal-Lokayukta framework and suggest reforms consistent with federalism and due process.

Demand: Answer the exact directive, use statutory/case evidence, explain what it proves, and finish with a qualified verdict.

Model answer

The framework's principal strength is an integrated statutory route from complaint to court without formally merging all powers.

Claim: Lokpal has credible legal tools. **Named evidence:** sections 20, 23, 25 and 29-35 provide inquiry/investigation routing, sanction, referred-case DSPE safeguards, attachment and Special Courts. **Analysis:** high-office coverage and court-linked enforcement exceed a purely advisory ombudsman. **Qualification:** Lokpal lacks a general express suo-motu route and depends on external investigators.

Claim: independence is institutionally supported. **Named evidence:** plural selection, fixed tenure, section 37 removal protection, charged expenditure, CAG audit and section 48 reporting. **Analysis:** these distribute control and create accountability. **Qualification:** vacancies, staff shortages, procedural delay and opaque disposal can hollow out formal guarantees.

Claim: State flexibility is constitutionally practical. **Named evidence:** section 63 requires each State to legislate but prescribes no uniform composition or power. Maharashtra and Karnataka illustrate different statutory models.

Analysis: experimentation is possible. **Qualification:** citizens receive uneven protection.

Reform should ensure timely appointments, stable multidisciplinary staff, interoperable Lokpal-CVC-CBI tracking, anonymised stage-wise disclosure, current asset-declaration rules and a model minimum Lokayukta framework. Any new suo-motu or investigative power should carry recorded reasons, recusal, hearing and judicial review.

Audited model length: 188 words (ceiling: 250).

Why this earns marks: It uses claim -> named evidence -> analysis -> qualification and directly answers the directive without treating allegations, sanction or prosecution as guilt.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

1. Ombudsman models and the Indian hybrid

The classical ombudsman commonly investigates maladministration and reports or recommends. India's Lokpal is a statutory hybrid: it receives a prescribed corruption complaint, can trigger preliminary inquiry or investigation, supervises referred DSPE matters, grants sanction in its statutory field, invokes attachment machinery and directs prosecution. This comparative label helps explain the institution; it cannot enlarge the Act.

2. Independence-accountability tension

Independence device	Accountability device	Persistent tension
Plural Selection Committee	Search and selection procedure	Executive and political actors remain central
Fixed non-renewable tenure	Removal through Supreme Court inquiry	Vacancies can weaken capacity without formally altering tenure
Charged administrative expenses	Budget, CAG audit and parliamentary laying	Resource dependence may continue in implementation
Referred-case CBI safeguards	Anti-dictation proviso and court review	Insulation must not become operational micromanagement
In-camera PM process	High threshold and confidentiality	Protection from abuse can reduce visible reasons

3. Section 17A of the Prevention of Corruption Act

Section 17A, inserted in 2018, generally requires previous approval before an inquiry or investigation into an offence alleged to relate to a recommendation made or decision taken by a public servant in discharge of official functions, subject to the statutory on-the-spot arrest exception. It is an external PC Act gate that an investigating agency must consider; it is not a Lokpal conviction rule. Its defence is protection of honest decision-making; its risk is delay or executive shielding. Any answer should distinguish section 17A approval from section 19 sanction for prosecution and from Lokpal's section 23 power.

4. Higher-judiciary jurisdiction: date-controlled issue

On 20 February 2025, the Supreme Court stayed the Lokpal order dated 27 January 2025 that had asserted jurisdiction over a sitting High Court judge. The interim order raised a serious institutional question and preserved confidentiality. No final merits proposition is claimed here as at 8 September 2026. This issue should be used only as a qualified current-law illustration, not as settled expansion or exclusion.

5. Reform tests

A reform deserves support only if it answers four questions: Does it strengthen lawful capacity? Does it preserve natural justice? Does it provide auditable reasons and judicial review? Does it respect section 63's State-law structure? These tests favour timely appointments, professional staff, interoperable case tracking, aggregate stage-wise disclosure, current asset-declaration rules and model minimum Lokayukta safeguards. They caution against giving an institution undefined power merely because existing enforcement is slow.

CONSOLIDATED REGISTER NOTES

Identity and evolution

- Lokpal is a **statutory**, Union-level, corruption-specific institution under the Lokpal and Lokayuktas Act, 2013; it is not constitutional.
- Sweden, 1809 -> First ARC, 1966 -> repeated Bills from 1968 -> 2011 anti-corruption mobilisation -> enactment in 2013 -> assent 1 January 2014 -> commencement 16 January 2014.
- Political mobilisation explains urgency; statute, amendment, rules and judgments determine law.

Composition, selection and service

Head	Exact recall
Size	Chairperson + not more than eight Members
Judicial share	50% of Members
Representation	Not less than 50% of Members from SC/ST/OBC/minorities/women
Chair routes	CJI/former CJI; SC judge/former SC judge; qualified eminent person
Judicial Member	SC judge/former judge or HC Chief Justice/former Chief Justice
Other Member	Impeccable integrity, outstanding ability, >=25 years listed expertise
Minimum age	45
Selection	PM, LS Speaker, LS LoP, CJI/nominee, eminent jurist
Search Committee	At least seven experts; diversity floor; panel not exclusive
Appointment	President by warrant
Term	Five years or age 70, earlier
Removal	Section 37 Supreme Court inquiry route plus narrow direct grounds

Common Cause (2017): section 4(2) made the Act workable despite a Selection Committee vacancy; the Court did not legislate a permanent substitute for the LoP.

Jurisdiction

- PM/former PM: covered with five excluded domains, full bench, two-thirds approval, in-camera inquiry and special record secrecy if dismissed.
- Union Ministers and MPs: covered.
- MPs: section 14(2) preserves Article 105(2) for speech/vote; **Sita Soren (2024)** denies bribery immunity without abolishing legislative privilege.
- Groups A-D Union officials: covered, with section 20 CVC routing.
- Former public servants: conduct must relate to the period in covered capacity.
- Bodies created by Parliament or Central-controlled/financed: conditional section 14(1)(f) coverage.
- Other societies/associations/trusts: clause (g) government-finance and notified-income conditions; clause (h) foreign-source donation above Rs 10 lakh/year or higher notified amount.
- Section 14(3): connected abettors, bribe-givers, bribe-takers and conspirators may be reached; State-service proviso may require State consent.

Complaint-to-court route

Complaint Rules 2020 filing

- > scrutiny
- > Lokpal chooses preliminary inquiry or investigation
- > CVC/Inquiry Wing/agency as statute directs
- > report + hearing + >=3-Member bench
- > investigation / departmental action / closure
- > investigation report to court + copy to Lokpal
- > sanction / charge-sheet / closure / departmental route
- > Prosecution Wing or agency
- > Special Court alone determines guilt and sentence

Clock	Rule
Preliminary report	60 days from reference
Preliminary inquiry	Ordinarily 90 days + further 90 days for recorded reasons
Investigation	Six months + extensions not exceeding six months at a time, reasons recorded
Special Court trial	One-year target; three-month reasoned extensions; total not beyond two years
Complaint limitation	Seven years from date of alleged offence

CVC, CBI and powers

- Groups A/B preliminary inquiry: CVC reports to Lokpal; Groups C/D: CVC proceeds under CVC Act.
- Section 25 superintendence concerns only Lokpal-referred DSPE matters.
- Lokpal cannot dictate investigation/disposal in a particular manner.
- Transfer of a DSPE officer investigating a referred case requires Lokpal approval.
- Search, civil-court inquiry powers, safe custody of records and attachment are statutory process tools, not proof of guilt.
- Provisional attachment: recorded reasons, maximum 90 days, immediate Special Court involvement; confirmation application within 30 days.
- Special Court controls confirmation/confiscation and restoration consequences.

Assets, false complaints and accountability

- Current section 44 after the 2016 substitution: every public servant declares assets and liabilities in the prescribed form and manner.
- Section 45 creates a conditional rebuttable presumption for wilful non-declaration or misleading information.
- Section 46 requires a false and frivolous or vexatious complaint, Special Court cognizance through the specified complainant, and preserves good-faith complaints.
- Section 13 charges specified administrative expenses on the Consolidated Fund of India.
- Sections 40-43: budget, parliamentary appropriation/grants, accounts, CAG audit and returns.
- Section 48: annual report to President; Parliament receives it with reasons where advice was not accepted.

Lokayuktas

- Section 63 requires a State, if it had not already done so, to establish a Lokayukta by State law within one year of commencement.
- It does **not** create one national State template.
- Maharashtra's 1971 enactment is a verified historical early State model with Lokayukta/Upa-Lokayukta inquiry and reporting provisions.
- Karnataka's 1984 Act supplies a distinct Lokayukta/Upalokayukta, investigation and prosecution design.
- Always compare exact State statutes on composition, appointment, jurisdiction, tenure, removal, investigation, prosecution, reporting and recommendation effect.

Prelims traps

1. Statutory, not constitutional.
2. Maximum eight Members, not always eight.
3. Percentage denominator is Members.
4. PM included with filters, not wholly immune.
5. Article 105(2) survives; bribery immunity does not.
6. Complaint route is not a general express suo-motu power.
7. CVC and CBI are not Lokpal departments.
8. Referred-case superintendence is not control of all CBI cases.
9. Sanction, attachment and charge-sheet are not conviction.
10. Section 63 does not standardise every Lokayukta.

Mains answer spine

Define statutory ombudsman

- > trace evolution briefly
- > state composition and independence devices
- > map exact jurisdiction and safeguards
- > decode complaint-to-Special-Court process
- > separate institutional roles
- > assess capacity, delay, federal variation and due process
- > propose matched reforms
- > conclude: capable coordinator, never an omnipotent super-agency

Qualified conclusion: Lokpal's legitimacy rests on broad but bounded jurisdiction, procedurally fair case routing, independent investigative capacity, auditable reasons and final judicial adjudication.